

THE LAST REBEL



JOSEPH A. ALTSHELER.

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She ran out uttering a cry, and turning a dismayed to face us.

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THE LAST REBEL

BY

JOSEPH A. ALTSHELER

*Author of "A Knight of Philadelphia,"
"The Sun of Saratoga," etc.*

WITH FRONTISPIECE BY

ELENORE PLAISTED ABBOTT



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THE LAST REBEL

CHAPTER I.

AT ODDS WITH THE COMPASS.

East or west, north or south? With all the experience of a man's years and the knowledge of many wise books of travel, I could not tell. I had taken no note of the sun when I left, and, neglected then, it would not serve me now as a guide. To me at that moment all points of the compass were the same.

The provoking sun which I could not use as a sign-post seemed bent upon showing how brilliant it really could be. The last shred of white and harmless cloud had been driven from the heavens, which were a deep unbroken blue, with the golden lining showing through like a faint, yellow haze. The glowing light clothed the earth, and intensified the red and yellow and brown tints of the leaves, painted by the master artist, autumn. In such a glorious flush the woods and the mountains were a dazzle and tangle of color. But through all the glow and blaze of the sun came the crisp and tonic coolness which marks the waning autumn and makes it best and most beautiful as it goes. It was good to be alone with forest and mountain. To breathe and to see were enough.

I cared nothing at the moment for the lost camp and my comrades of the hunt. Yet I was in no Arcady. Take down the map of Kentucky, and you will see in the east a vast region, roughened over with the dark scrawls meaning mountains, through which no railroad comes, and few roads of any kind either. Add to it other large and similar portions of the map contiguous in Virginia, West Virginia, and Tennessee, and you have enough country to make a brave kingdom,—a kingdom, too, over which no man yet has been able to make himself ruler, not even any governor of the four States, and

they have had some fine and fit governors. In this kingdom of mountain and wilderness I was lost, and was not mourning it, for the time.

A light wind stirred the currents of air and began that faint, curious moaning through the drying leaves which I call the swan-song of autumn. The brilliant foliage quivered before the light touch of the breeze, and the reds and the yellows and the browns and the lingering bits of green shifted and changed like shaken pieces of colored silk.

But one must do more than merely breathe and see, or even listen to the wind playing on the autumn leaves. This kingdom might be mine by right of sole tenancy, but after a little I preferred—greatly preferred—to find some partner of my throne who would feed me and house me and show me my way back to camp. Not knowing any other mode by which to choose, I chose the direction which indicated the easiest foot-path, though that might lead me farthest astray. I put my rifle upon my shoulder and walked through the yellowing grass and the short red bushes, over hills and down gullies, which were a trial to muscles and the forgiving spirit. But I came to nothing which looked familiar, not a tree, not a bush, not a hill, not a rock.

I began to tire of the monotony of the wilderness, which was lately so beautiful; ever the same reds and yellows and browns and bits of lingering green; ever the same burnt grass and purpling bushes and rocky hills; but never a human being except myself, and I am not company for two. When one grows lonesome beauty departs. I abused the wilderness in its unchanged garb, and longed for the camp and the ugly black cook frying strips of bacon over the coals. Hunger will not be denied its complaints, though in my case they availed nothing.

I wandered about until the spirit and the flesh rebelled sorely and called upon me for the relief which I had not to give. Both ankles were in a state of open mutiny; and I sat down upon the crest of a high hill to soothe them into temporary quiet. I observed then a very marked change in the skies, real, and not due to the state of my mind. The sun, as if satisfied with a half-day's splendor, was withdrawing. Some clouds, dark purple streaks showing in them, hid the blue and made the skies sombre. All the bright color with which the wilderness had prinked and primped itself in the sunshine faded and became dull in this twilight afternoon.

It needed no weather-wise prophet to guess quickly the meaning of these changes. In the mountains a whiff of snow sometimes comes very early,—now and then so early that it whitens the skirt of lingering autumn. The clouds and the misty air with the chilly damp in it betokened such an arrival. Once more I longed for our snug little valley, with the camp, half tent, half cabin, and the sight of the fat black cook frying strips of bacon over the glowing coals.

I had no fear of a heavy snow. The season was too early, I thought, for anything more than a mere spatter of white. But snow, whether in large or small quantities, is wet and cold, and it was sufficient to be lost, without these new troubles.

From the hill I thought I could see a valley far to the northeast, with the blue and silver waters of a brook or small river shining here and there through the foliage. I decided to make all haste toward it, for in these mountains human life seeks the valleys, and if I found food and shelter at all it would most likely be there.

I took small account of the rough way, and almost ran over the stones and through the scrub. I was in some alarm, for which there was ample cause. The clouds thickened, and clothed the higher peaks. Yet I was cheered by my belief that in truth I had seen a valley of some extent; the patches of blue and silver water showed more plainly through the distant foliage, which looked greener than the withering leaves on the mountain, indicating a sheltered and warmer zone. Rising hope brought back some of my strength, and when I reached the summit of a new hill in the long rows of hills that thrust themselves before me as if to bar my way, I was ready to shout for gladness at the sight of smoke.

The smoke rose from the valley, merely a faint spiral of blue, slowly ascending, and melting so imperceptibly into the clouds that I could not tell where it ended. Yet there was never a more welcome sight to me than that little smoky wisp which told so plainly of man's presence.

I pushed on with new zeal, stumbled against a stone, and rose with an ankle that made bitter complaints. It was not a sprain, but it was unpleasantly near one, and I doubted my ability to walk with the cripple over so wicked a way to the valley. I abused the cruelty of fate, which was but my own

carelessness and haste, and then tried to think out the matter. My first impulse was to throw aside my gun and escape its weight; that led to my second, which was to fire it in the hope of attracting attention.

I had plenty of cartridges. I discharged a bullet into the air. The echo was carried from hill-top to hill-top, until at last I heard it faintly speeding away through the distant mountains. If any one were near, such a report could not escape his ears; but the only answer was the snow, which began to fall as if my shot had been the signal for its coming. The soft flakes descended gently, but they would soon put a sheet of white over all the ridges. Some melted on my face, and the damp chilled me. It was not a time to spare my crippled ankle. I limped on, firing my rifle a second, third, and fourth time. I could still see the spiral of smoke, a true beacon to me, though it was all but hid by the increasing clouds.

I fired the fifth time, and while the echo was yet travelling among the peaks I heard a faint and very distant halloo. I had no doubt that it was an answer to my shot, and, to be sure, I emptied a sixth cartridge into the air. Back came the far cry. Like the shot, it too was taken up by the echo: ridge repeated it to ridge, faint and far away, until I could not tell from what point of the compass the true sound had come.

I was perplexed, but hopeful. I believed that help of some kind was near. I sat down on a rock and expended much ammunition. The snow was still coming down in the same gentle undecided way, but I was compelled to stop between shots and brush the damp, white patches off my clothing.

Presently the answering halloo sounded very near me, and I ceased to fire, replying with a shout.

Two large dogs scampered through the bushes, and, approaching me, began to bark as if they had brought game to bay. A strong voice ordered them to be quiet, and then the owner of dogs and voice came into view.

I had expected the usual mountaineer, sallow, angular, and shabby, but I saw at once that this man was different. The clean-featured, keen, intelligent face could not belong to one of the ignorant dwellers in cabins. He was tall, thin, and past sixty, well dressed in a gray uniform, upon which the brass

buttons shone with peculiar brightness. I had seen such uniforms before, but they were relics, and men do not often wear them nowadays.

He approached me, walking in the upright fashion of a military man, and showed much strength and activity for one so far advanced in years.

"I must apologize for my dogs, sir," he said. "They see strangers but seldom, and when they do see one they must lift up their voices and announce it to all the world."

"The sight of your dogs, and still more that of their master, is very welcome to me," I replied.

He bowed with ancient grace and thanked me for my courtesy.

"I must ask your help," I said. "I've lost my way, and I've bruised my ankle so badly on a stone that I fear I cannot walk many more miles."

"It is not far to my place," he replied, "and I will be glad to offer you such hospitality as it can afford."

I looked at him with the greatest curiosity, a curiosity, too, that increased with all he said. He had no weapon, nothing to indicate that he was a hunter; and the uniform of a fashion that went out of style forever, I thought, more than thirty years ago, with its gleaming brass buttons and freshness of texture, drew more than one inquiring glance from me, despite my effort not to appear curious to a stranger upon whom I had become dependent. But if he noticed my curiosity it did not appear in his manner.

The dogs, secure in the judgment of their master, sniffed about me in friendly fashion. The man pointed toward the corkscrew of smoke which the clouds and the film of snow had not yet hidden.

"My home is there," he said. "Come, let us start. This is no place for a man in your condition to linger. If your ankle gives way I can help you."

But rest had improved my ankle, and I found that I could walk in a tolerable manner. He took my gun from me, put it over his own shoulder, and whistled to the dogs. They were leaping about like two panthers in play, but at his whistle they ceased the sport and marched sedately, neck and neck, toward the rising smoke, leading the way for us.

The old man chose the way as if he knew it, avoiding the rougher slopes and winding about in a sort of path which made the walking much easier for me. As if good luck brought good luck, the snow ceased, and the sun, returning, drove all the clouds out of the heavens. The lustrous sunshine again gilded all the colors of mountains and forest and brought out the fine and delicate tints of the reds and yellows and browns. The white skim of snow over the earth dissolved in tears, and the warm sun that made them drank them up.

The valley lying fresh and yet green below us broadened. The coil of smoke grew into a column.

"Did you say your camp lay there?" I asked, pointing toward the valley. We had been silent hitherto.

"I did not say my camp, sir; I said my home," he replied, with some haughtiness. "Twenty yards farther, and you can see through the trees a corner of the roof of Fort Defiance."

I did not understand him. I saw no reason for his high tone, and much was strange in what he said. Yet he had the manner and bearing of a gentleman, and he had been a timely friend to me. I had no right to ask him curious questions.

He did not seem inclined to further talk, and I too was silent. But I found employment for my eyes. We were descending the first slopes of the valley, and it lay before us a welcome oasis in the weary wilderness of mountains.

It must have been several miles in length and a good mile or more across. Down the centre of it flowed a creek of clear, cool water, almost big enough to call itself a river, and the thickness of the tree-trunks and the long grass browned by the autumn breath showed the fertility of the soil. Through the trees, which still retained much of their foliage, the corners of house-roofs appeared. There are many such secluded and warm little valleys in the Alleghanies, and I saw no occasion for surprise. In truth, what I saw was most welcome: it indicated the comfort of which I stood in need.

"I haven't asked you your name," said my host, suddenly.

"Arthur West," I replied.

"I would infer from your accent that you are a Northerner, a Yankee," he said, looking at me closely, and in a way I did not quite understand.

"You are right on the first point, but not on the second," I replied. "I am a Northerner, but not a Yankee. I am not from New England, but from New York City."

"It's all the same," he replied, frowning. "You're a Yankee, and I knew it from the first. We call the people of all the Northern States Yankees."

"Have it so," I replied, with a laugh. "But abroad they call us all Yankees, whether from the Northern or the Southern States."

"Luckily I never go abroad," he replied, frowning still more deeply. "You have not asked me my own name," he continued.

"No, but I confess I would like to hear it," I replied. "I wish to know whose hospitality I am about to enjoy, a hospitality for which I can never thank you too much, for if I had not met you I might have starved or frozen to death in this wilderness."

"I am Colonel John Greene Hetherill, C.S.A.," he replied.

"C.S.A.?" I said, looking at his gray uniform.

"Yes, 'C.S.A.,'" he replied. His tone was emphatic and haughty. "Confederate States of America. What have you to say against it?"

"Nothing," I replied. "I leave that to the historians."

"Who are mostly liars," he said.

He looked at me with an expression of undoubted hostility.

"I would have liked it much better had you been a Southerner and not a Yankee," he said. "How can I trust you?"

"I hope I am a gentleman," I replied. "At any rate, I am lame and in straits, and under no circumstances would I violate your hospitality."

His expression softened. He even looked at me with pity.

"Well, it's the word of a Yankee," he said, "but still—it may be the truth. Remember that on your word of honor you are to tell nothing about Fort Defiance, its approaches or its plans."

"Certainly," I said, though secretly wondering.

He seemed to be relieved of his doubts, and, descending the last slope, we walked at a brisk pace down the valley.

I was surprised at the evidences of care and cultivation, though the fat, black soil of the valley would justify all the labor that might be put upon it. The fences were good, the fields well trimmed, and we soon entered a smooth road. Everything seemed to have the neatness and precision of the proprietor, the man with whom I was walking. I looked at him again, and was struck with the evidences of long military habit; not alone his uniform, but even more decidedly his manner and bearing.

We passed some outhouses built in a better manner than I had seen elsewhere in the mountain valleys, and approached a large square building which I knew at first sight to be Fort Defiance, since it could be nothing else. It was of two stories, made of heavy logs, unhewn on the outside, the upper story projecting over the lower, after the fashion of the block-houses of the frontier time. I supposed it to be some such building, standing here after the lapse of a hundred years in all its ancient solidity and devoted now to more peaceful uses.

The valley was no less pleasant to eye than to mind. When one is sore and hungry, mountains lose their picturesqueness and grandeur; a crust and a bed are infinitely more beautiful, and this valley promised both and better. The house stood upon a hill which rose to some height and was shaped like a truncated cone. The little river flowed around three sides of the hill in a swift, deep current. The fourth side I could not see, but the three washed at the base by the river were so steep a man could climb them only with great difficulty. It was a position of much natural strength, and in the old times, when rifles were the heaviest weapons used in these regions, it must have been impregnable except to surprise.

The road we were following curved around and approached the house from the south side, the side which at first had been hidden from me, and then I

saw it was the only ordinary way by which one could enter Fort Defiance. But even here art had been brought to the aid of nature. A wide, deep ditch leading from the river had been carried around the south side, and the mound was completely encircled by water. We crossed the ditch on a drawbridge let down by an old man in Confederate gray like his master, though his was stained and more ancient.

Had the architecture of the fort been different, had it been stone instead of logs, I could easily have imagined myself back in some mediæval castle of Europe, and not here in the mountains of Kentucky.

The fort looked very peaceful. Smoke rose from three or four chimneys, and, drifting, finally united, floating off into the clouds. This was the lazy coil which I had seen, and which perhaps had saved my life.

We climbed some stone steps, and when I reached the top I found a little old-fashioned brass field-piece confronting me. But there was no rust on its muzzle, which looked at me with the semblance of a threat.

"One would think from your preparations, colonel, that we were in a state of war," I said, jestingly.

"Have you any weapons on you?" he asked, frowning again, and not answering my jest.

"No," I replied; "I had nothing but the rifle, and you have that."

"I will keep it for the present," he said, curtly.

We paused before a heavy door of oak. While the colonel knocked, I looked up at the overhanging edges of the second floor and saw that they were pierced for sharpshooters. But before I had time to look long, the door was opened by a man in a suit of Confederate gray, like his fellow at the drawbridge. He saluted the colonel in military fashion as the others had done, and we entered a wide hall which seemed to run the entire width of the house. Many of the old houses in Kentucky are built in this fashion. The hall was decorated, I might almost say armed, with weapons,—rifles, pistols, bayonets, swords, many of them of the most modern type. Tanned skins of bear, deer, and wolf were on the floor. Had it not been for the late

style of the weapons, I could have maintained the fiction that it was a castle of the Middle Ages and this the baronial hall.

He led me up a flight of steps, and opened the door of a small room on the second floor. The room contained nothing but a small table, a camp-bed, a three-legged stool, and two or three other articles of furniture equally plain. There was but a single window, and it was cross-barred heavily with iron. It looked more like a cell than a chamber. Nor did it belie its looks.

"This will be your prison for the present," said the colonel. "Lie down on the bed there and rest, and Crothers will be up in ten minutes with food for you."

"Prison!" I exclaimed, in surprise.

"Yes, prison," he repeated, "but that is all. I do not intend to deal harshly with you otherwise. You are a Yankee, and I must see that you do not meddle."

He cut short my protest by leaving the room, slamming the door, and locking it. The door was so thick I could not hear his retreating footsteps. As the colonel had said, I was a prisoner, but I did not feel much alarm. I had confidence in his promise that I would come to no harm. I looked between the bars of the window, which opened upon a small space like a court. One side of the court was open and ran sheer up to the edge of the cliff, which dropped away thirty or forty feet to the river below. The torrent foamed around the mound with a tumult like a mill-race. Beyond were open fields, ending abruptly at the foot of steep and rough mountains.

CHAPTER II.

ON TRIAL.

My eyes followed the long sweep of the mountains, their shaggy outline cutting the clear blue of the skies; then they came back to the court, and for the moment I thought that they had deceived me, for either I saw the flutter of a woman's dress or imagination was my master. A woman in this rough fortress was the last thing for me to expect. But I reflected that it was not so strange, after all. A serving-woman, probably, the wife of one of the colonel's retainers. It was in keeping with the character of the place, which in my fancy I had turned into a baronial keep.

I saw the flutter of the dress again, and then its wearer came into better view. She was looking at the river, and stood with her back toward the house. That was no common serving-woman, the wife of no laborer. The figure was too slender, too erect; there was too much distinction and grace in the pose, and the dress itself was of good cut and material. That was all that I could see, save a mass of coiled, dark brown hair.

I was full of curiosity, nor do I think I was prying because of it. Put yourself in my place and see. In a few moments she turned and looked directly up at my window, though she could not have known that I was gazing out at her. It was the face of a girl of twenty, fair and strong, yet sad. Even at the distance between us, I could see enough resemblance to guess that she was Colonel Hetherill's daughter. A likely enough supposition, anyway, for what girl of such appearance could be here unless his daughter?

She looked up at my window only a moment or two, and then, walking with a light and graceful step, disappeared through some door opening into the

court. I hold that I am not without a fair share of imagination; and easily I builded a fine romance for myself. Here was I, an innocent prisoner in the cruel baron's castle, and this was his fair daughter, who would fall in love with me and rescue me. By Jove! she was handsome enough for me to fall in love with her. The only trouble about my romance was that in the morning after a good night's rest I would be sent with a guide to our hunting-camp, and that would be the end of it.

Happily, when I reached this conclusion, the door was opened, and Crothers came in with food, for which I was devoutly grateful. Crothers—I had heard the colonel call him so—was the man who had opened the door for us, a hatchet-faced, battered old fellow, who walked with a limp and who yet looked strong and active.

Evidently the colonel had no mind to starve me, for Crothers bore enough for two upon his tray. A smoking pot of coffee, steaks of venison and beef, warm biscuits, and butter, made a sight as welcome to my eyes as a Raphael to an artist's, and created odors that were divine. My spirits rose to the summer-heat mark.

"I see that the colonel has a proper regard for my health and well-being, Crothers," I said, jovially.

"The colonel hates all Yankees, and so do the rest of us," he said, in surly fashion; "but he doesn't want to starve any of you to death, though I guess you starved enough of us to death in Camp Chase."

"Camp Chase? what the deuce was that?" I asked.

"One of your war prisons," he replied. "Try that coffee; you'll find it good, and you'll find the venison and the beef to be good too."

I had no doubt that I would. I put the question immediately to proof, which, I may add, was satisfactory. Encouraged by his friendly comment upon the food, in which he seemed to take a certain pride, perhaps having cooked it himself, I spoke to him in friendly fashion, expecting a reply of like tenor. But he seemed to have repented of his sudden courtesy, and made no reply. He had placed the tray upon the table, and without further word or action left the room. I heard him locking my door with as much care as if he had been Colonel Hetherill himself.

I began now to feel that I was in truth and reality a prisoner, a fact which I contemplated before only in a humorous or make-believe way. Nevertheless it did not interfere with my appetite. I realized that prisoners may become as hungry as free men, and, as I could truthfully say I knew not where the next meal would come from, I made satisfactory disposition of this.

Refreshed and strengthened, I put the emptied tray on the floor, and drew my stool to the window, where I took a seat, hoping that the lady of the castle, for so in my fancy I had named her, would appear again. But the lady did not condescend, nor did any other human being. Perhaps they did not know that I was waiting. Instead, I saw the coming of the night.

Since that night I have felt pity for every prisoner in his cell who watches the approach of darkness. There is so much friendliness, so much good cheer and encouragement about the sun that even the felon must look to him, through bars though it be, as a friend. Even I, who was conscious of no crime and had just eaten a good warm supper, the best of all tonics, felt my spirits decline with the day.

My window looked to the southwest, right into the eye of the setting sun. It was a very big sun and a very red sun, turning all the mountains into red, its blazing scarlet dyes rubbing out the more modest yellows and browns, and even touching the withered grass with flame. The red lances of light fell across the river, and the water foaming around the mound seemed to break in bubbles of fire.

Lower sank the sun. One edge of the flaming globe disappeared behind the mountains, and a line of dusk began to creep up under the rim of the red horizon. It looked like a battle between night and day, with day losing despite all the power of its ally, the sun. Broader grew the band of dusk, and narrower became the red segment of the sun. Only the crest of the mountains, long and sharp like a sword-blade, was in the light now. There every shrub, every rock, stood out magnified by the last but most brilliant light of the sinking orb. Beneath this luminous ribbon, trees, rocks, earth, all were gone. The mountain crests seemed to swim in the air.

I had seen many sunsets in the mountains, but never before in such a peculiar situation, and I own that I felt awed. The sun became but a red fragment; the red leaves and the fiery bubbles on the river were gone. I

could hear the rush of the water, but I could not see the torrent. I looked up again: the sun, yielding to the night, had disappeared, leaving but a faint gleam to mark where he had retreated behind the mountains, to come up again in another place, victorious in his turn, the next morning. Save for this remembering gleam, the mountains and the valley were in complete darkness.

It was dark in my room, too, and it was only through accustoming my eyes to the coming of the night that I was able to see the outlines of the scanty furniture. My spirits were heavy. I knew nothing of the nature of the man into whose hands I had fallen, and in these secluded mountains there was nobody to help me. You can credit, if you will, much of this feeling to the darkness, which often is a wet blanket upon the feelings not alone of children, but of grown and experienced men as well.

It was then with a sensation of relief that I heard some one fumbling at the door. Any company would be better than none. The door opened, and the colonel entered, followed by the man who had brought my supper and a third whom I had not seen before. This new man was of better dress and presence than Crothers, and the colonel introduced him briefly.

"Dr. Ambrose, my military surgeon, sir, and a very good one too, I can assure you."

Crothers put a lighted candle on the table. Dr. Ambrose examined my swollen ankle. He bound around it a cloth soaked in liniment, and said it would be well in the morning.

"Now, sir," said the colonel, speaking in a brisk, curt manner, "having done our duty by you as a disabled prisoner, we will proceed with your examination. Doctor, it is necessary that this should be taken in writing. You will kindly act as clerk while I question the prisoner."

I opened my mouth to protest and to demand explanation, but the colonel cut me short with a "Be silent, sir, until the time comes for you to speak;" and, rather than be exposed to another such insult, I remained silent. Moreover, the scene amused me somewhat. I was wondering what this strange old man would do next.

Dr. Ambrose drew up my stool—I had taken a seat on the bed—and produced a roll of paper, pen, and small ink-well. His was the deliberation of a military mind provided with time and bent upon doing things well. The colonel stood before me, straight and stern.

"What is your name?" he asked.

"Arthur West," I replied. "This is the second answer to the same question."

"Your home?"

"City of New York, State of New York."

"Your age?"

"Twenty-seven."

At every question and answer I heard the scratching of the doctor's industrious pen across the pad of the paper. Now, be it understood, I knew no law compelling me to answer these questions, but I thought it better to do so, and then I might see to what end the matter would come. I smiled a little: the colonel saw it at once.

"No levity, sir!" he cried, fiercely. "You do not seem to be aware of your position?"

Perhaps I was not; but I said nothing.

"What were you doing within our lines in civilian's dress?" he asked.

"Whose lines?" I replied. "I do not know what you mean."

"The lines of Fort Defiance, the last stronghold of the Confederacy; which stronghold I have the honor to command," he replied, his ancient blue eyes lighting up with the fires of zeal.

I laughed.

"The Confederacy!" I said, in derision. "Why, the last stronghold of the Confederacy surrendered more than thirty years ago."

"You lie, sir!" thundered the colonel, "and for the proof that you lie, look around you! The stars and bars still fly above this fort, and I and my men have never surrendered to the Yankees, nor ever will. For many hours now you have been on the soil of the Confederacy, and I, for the lack of higher authorities, am in supreme command, both civil and military.—Is not all that I say true, doctor? Is it not so, Crothers?"

Crothers and the doctor bowed in a manner indicating deep belief. I saw that I was to receive neither help nor sympathy from them.

"What is your occupation?" asked the colonel.

"I do not see that it is any business of yours," I said; "but, as I am not ashamed of my profession, and you may have saved my life on the mountains, I've no objection to telling you. I'm an artist."

At this modest announcement the colonel's face, to my surprise, became more threatening. Never did I see a man's expression more thoroughly betoken suspicion.

"An artist?" he exclaimed. "You paint, you draw things?"

"Some of the critics say I don't, but my friends say I do," I replied.

He grumbled to himself and looked at me with angry, distrustful eyes.

"What were you doing on these mountains?" he asked. "Why were you approaching Fort Defiance?"

"I told you I was on a hunting-trip and lost myself," I said. "I hadn't the slightest idea I was approaching Fort Defiance. I never heard of the place before."

He pulled his fierce, gray moustache in doubt, looking at me as if mine were the most unwelcome face that ever met his gaze. Presently he beckoned the doctor to the door, and they whispered together there for a few moments. Then he returned to me.

"You have in reality a bad ankle, the doctor says, and he is inclined to give you the benefit of the doubt," he said, "and so am I. At any rate, we will not

treat you badly, though we may be forced to keep you as a guest for a little while."

I thanked him for his gracious consideration.

"We are compelled to keep you locked in to-night," he continued, "but we may be able to do better for you in the morning."

"Very well," I said, with some impatience. "Keep me locked in if you choose, but at any rate let me sleep."

I thought his rough treatment of me offset the favor I had owed him. Moreover, I was very tired and sleepy, and the obligation of politeness seemed to rest upon me no longer.

The doctor folded his notes and handed them to the colonel, who placed them carefully in an inside pocket. Then they bowed stiffly, and went out, locking the door as usual.

I looked out through my window. The moon was rising above the mountains. In the valley the foliage was tipped with silver. The bubbles on the river, fire-color at set of sun, had turned to silver now. Nothing seemed to stir; all was peace.

Wondering what would be the end of my strange adventure, I lay down on the bed, and in five minutes forgot wonder and all other things in a deep sleep.

I might have slept all the next day too, but I was awakened by a good shaking at the hands of Crothers, and found the room full of light. Crothers was standing beside me. He was a sour-faced fellow, but he seemed to be less hostile that morning, and I asked him cheerfully if he was going to bring me my breakfast. He said no, but told me I was invited to the colonel's own table.

"It's Miss Grace who did it," he said. "She didn't think the colonel was treating you just right."

"Miss Grace is the colonel's daughter, is she not?" I asked.

"Yes."

I was sure that the girl I had seen in the court the evening before was Grace Hetherill. This invitation looked promising. The colonel would surely come to his senses now and act like a man who knew it was the year of our Lord 1896, and not 1864. As there was to be a lady present, I asked for a bath and comb and brush, as I wished to make myself very spruce. All these I obtained, finding that the fort was not without its comforts. Then, Crothers still my escort and guide, I went to the breakfast-table.

I was not prepared for the scene of comfort, even luxury, that met me in the dining-room. Yet I was not astonished. The presence of a cultivated young woman in the year 1896 is responsible for much. It was a large apartment, decorated with horns and antlers and some fine old silver-bound drinking-cups of a past age. But I had little time for inspection. The table was set, and the company was waiting.

I seemed to pass suddenly from the position of prisoner to guest, and the transformation, in seeming at least, was complete. The colonel, with all the dignity of Kentucky good blood and the military life, saluted and introduced me to his daughter.

"My daughter, Miss Hetherill, Mr. West of New York, one of the other side."

I made my best bow. She was worthy of it. It was the girl I had seen in the court. No fainting maiden, no Mariana in the moated grange, was this, but a tall, red-cheeked girl with brown eyes, lustrous dark brown hair, and modern attire. Here was one who had seen life beyond the walls of Fort Defiance or its valley. Any fool would have known it at the first glance. In the presence of this splendid woman, who received me with so much tact and grace, I began to feel as if the father owed me no apology.

The breakfast-table was worthy of the hostess who poured the coffee for us. I glanced again at the room. On the wall, gazing at me with calm eyes, was a fine portrait of General Lee. Near it was one of Stonewall Jackson. Farther on was Jefferson Davis, and as I looked at the four walls of the room I saw that the whole Confederacy was present. Wreathed over the door somewhat after the fashion of a looped-up curtain was the Confederate flag.

I wished to ask many questions of this strange household, but courtesy forbade it, when I saw that every time I led the conversation in the direction of curiosity it was skilfully turned aside. Instead, we talked of the great world outside, and made very good progress, barring a certain unfamiliarity on the part of the colonel, who spoke as if all these things were vague and unreal to him.

There was a wide window at the end of the room, and I could see that it was a glorious morning without. The torrent, thirty feet down, dashed and sparkled in front of the window, the gay sunlight falling on it and showing rocks and pebbles in its clear depths. All the brilliant colors of late autumn, which I had admired so much the day before, reappeared, more dazzling after a brief eclipse. I knew that the air outside was tonic like good wine, but there was enough just then to keep me content in that breakfast-room, the heart of the lost Confederacy. The lost Confederacy! How could I say that, with its president and ministers and generals looking down from the walls at me as if all the world were theirs, while the stars and bars, under which I had just passed, hung in loops over the door!

As his daughter and I talked more, the colonel talked less. Seen in the light of the morning, his face looked rather worn, and once when he threw his yet thick white hair back with his hand I noticed the scar of a deep wound across his head. I began to feel sympathy for him without knowing exactly why. He rose presently and excused himself, saying it was time to give his men some directions for the day. Miss Hetherill and I dawdled a little over the coffee-cups, and I took the opportunity to thank her for her intercession with her father in my favor. She did not make light of my thanks or of her act, and her manner appeared to indicate a belief on her part that I had been in real danger; which, however, I had not been able to persuade myself was so, nor could I yet.

She asked me if I would look through the house,—I noticed she did not call it fort, and I consented with gladness, saying I would be pleased to go anywhere with so fair a guide, which she accepted with the carelessness of one who had heard the like before.

She took me into a room she called the great parlor, and a noble room it was, too, though here, as elsewhere, the atmosphere was distinctly military.

It was full thirty feet square, with a vaulted ceiling of polished oak. Furs were on the floor and arms on the wall, repeating rifles, revolvers, bayonets, swords in much variety.

"It is my father's chief delight to polish these and to see that they are in perfect order," she said.

"Miss Hetherill," I said, speaking suddenly from impulse, "why does your father cherish this delusion? Why does he not go and live among his kind?"

I regretted instantly that I had spoken so, for she turned upon me with a sudden flash of anger.

"Delusion, sir?" she exclaimed. "You forget yourself. It is the most real thing in the world to him. Be careful how you make use of such expressions here. I advise you also not to forget that you are still my father's prisoner."

She spoke with so much earnestness that I was impressed, more from fear that I had wounded her feelings than from fear for myself. I felt confident yet that it was the year 1896; and that all the world was at peace, barring the little wars of England, which don't count. She took me no further than the great parlor—or the armory, if its fit name be applied. My unfortunate question seemed to make some change in her intentions, and she suggested that we walk outside on the terrace.

It was a delight as keen as any I had ever felt to step out after imprisonment into the brilliant sunshine of the free and open world. Miss Hetherill threw a light cloak over her shoulders, for there was a sharp coolness in the air, and together we strolled over the terrace. I admired the solidity and strength of Fort Defiance, though a good-sized modern cannon could have knocked it to pieces with ease, if any one were ever able to get a cannon over the maze of mountains that separated this valley from the remainder of the world. It was impregnable to attack by small arms, if well guarded. The drawbridge was still up, and I spoke of it.

"It is up most of the time," she said, frankly, "but to-day it will be up more than usual. That is on your account. You are to be kept well guarded."

"The current of the river is too swift," I said; "but I think I could swim the moat."

"If you succeeded," she said, "you would probably starve to death in the mountains."

"Then I shall remain here," I said. "I'm glad that I have so good an excuse for remaining."

I sought to be gallant, but she only frowned, and I did not attempt it again. She left me presently, going into the house, while I continued my stroll in the crisp, invigorating air. I could take but a limited walk at best, merely the circuit of the hill-top, embracing perhaps a couple of acres around the house. Within that space I could wander at will, and no watch seemed to be set upon me.

CHAPTER III.

AN UNLUCKY SKETCH.

The hill projected farther toward the southwest than in any other direction, and in my wanderings I came to that point. Looking back, I obtained a sweeping view of Fort Defiance, with its sloping roofs and sombre-hued walls. At one angle the vines had grown up and clung against the wall. It was such a place as I would like to tell about when I returned to my friends, and, what was better, I could show it to them in its real and exact proportions. I had a pencil and some good white cardboard in an inside pocket.

I found a good seat on a stone, made ready with board and pencil, and began to study the fort. It was a fine subject for an artist, and as I sketched the rough outlines my enthusiasm grew. I had a brilliant light, which brought out every curve and angle of the queer building. Gradually, in my absorption as the picture spread over the cardboard, I forgot everything else. I was just putting in the little brass cannon that commanded the approach to the fort, when pencil and picture were snatched violently from my hands. I sprang up, full of wrath.

The old colonel stood before me, his face red, and his eyes flashing with indignation.

"You villain of a spy! You damned Yankee!" he cried.

"What do you mean? Are you crazy?" I asked. I did not take kindly to such names, even from the mouth of an old man.

He was in a great rage, for his next words choked him. But he got them out at last.

"You an innocent hunter!" he cried. "And you were lost in the mountains! That's a pretty tale! I suspected you from the first, you infernal Yankee spy, and now I have the proof."

I was really afraid the old man would fall down in a fit, and I began to feel more sorrow than anger.

"If you'll explain I'm ready to listen," I said, resuming my seat on the big stone, "and when you're through explaining I'll thank you to give me back my pencil and sketch."

He seemed to feel the necessity of self-control, though I could see his anger was not diminishing.

"You claimed to be a hunter lost in the mountains," he repeated, "when, in fact, you are a Yankee spy sent here upon your miserable business into the last stronghold of the Confederacy."

I laughed loud and long. I know I ought not to have done so, but I could not help it. The blood rose higher in his cheeks, and his lips trembled, but he had himself under firm control at last.

"I'm a spy upon you, am I?" I asked, "Where's the proof?"

"Here it is," he said, holding up my pencil and sketch of the fort,—a poor enough sketch, too. "At the intercession of my daughter, I have been treating you this morning as a prisoner of war, ready for exchange or parole, and your first use of this hospitality is to draw for the Yankee government sketches and maps of my fortifications."

"I did not intend to take that sketch to Washington," I protested, mildly.

"It is quite certain that you will never do so," he said, putting sketch and pencil in his pocket. "I have other uses for these. Come with me."

"Suppose I decline," I said. I was growing a little obstinate. Moreover, I was tired of being hacked about.

He blew a little thing like a policeman's whistle: three or four men in Confederate uniform came out of the fort or the little outhouses.

"We will see whether you will come," said the colonel, as the men approached. I have an objection to bruises and undignified struggles; so I concluded to go.

"If you will kindly lead," I said, "I'll follow." I am happy to say that I retained my calmness and presence of mind.

"Come on behind him, Crothers, and you too, Turner," said the colonel. "We will take no more chances with him."

The two men closed up behind me, the colonel marched on before, and I was the convict in the middle. Thus we stalked back into Fort Defiance. Before I entered the door I saw Grace Hetherill looking from an upper window; her face expressed an alarm which I did not feel. I smiled at her in virtue of our brief comradeship of the morning, but she did not smile back: we had stalked out of view the next moment.

The colonel led the way to the little room or cell which I had occupied during the previous night, and showed me in, with scant—very scant—courtesy.

"It will be necessary to search you," he said. "We know not what further sketches or maps of Fort Defiance you may have concealed about you."

I think on the whole I am a tolerant man, but at this proposed indignity my stomach revolted.

"I will not submit to a search," I said. "You have no right to do such a thing."

"It is in perfect accordance with the laws of war," replied the colonel, very calmly. "Spies are always searched. I do not see upon what ground you base your protest."

He looked very determined, and I recalled the fact that I was opposed to bruises and undignified struggles. Moreover, I remembered the consoling fact that I had a refuge in injured innocence. When Crothers went through my pockets I made no resistance. He found nothing more dangerous than a

penknife, a handkerchief, and some keys made to fit doors very far from Fort Defiance.

"Are you satisfied?" I asked the colonel, when his man had finished.

"For the present," he replied, shortly. "I will have more to say to you before long."

He and his men went out. They seemed to be very careful about fastening the door, for they spent a deal of time fumbling with the lock.

I drew my stool up to the window and took my seat there, beginning my second imprisonment in the same room; my second state, so the colonel seemed to intend, was to be much worse than the first. The complex character of this old warrior interested me and aroused my curiosity; his fierce and somewhat stilted invective amused me, now that he had gone from my presence, and I was in a state of wonder, too, as to what the end of the adventure would be. A rare adventure it was, without doubt, and I vowed to myself that it should not suffer in the telling when I returned to my friends in the city.

Thus amused and surmising, all my vexation at the colonel's high-handed treatment and verbal abuse of me departed. Instead, I wondered how any man, at the end of thirty years, could cling so firmly and at such a sacrifice to a lost and now vain cause. A feeling of hunger put a stop to this guessing and wondering. The air of the morning had been crisp and fresh, and I had worked hard over my unfortunate picture. I needed refreshment, and, since I owed the colonel no politeness, I kicked the door violently, in the hope that I would attract some one of his Confederate veterans, to whom I could give my order.

Though I made a deal of noise, nobody responded, and I quit kicking. I was tempted to smash the window, but rages are exhaustive and ineffective, and I decided not to do so. At last I concluded to be a martyr. It is one of the most consoling of all things to feel that you are a martyr, and my peace of mind was restored. I decided that I would not take the thing seriously, and that when I left Fort Defiance I would not upbraid the colonel for his abuse of the laws of hospitality, so sacred in the mountains.

I resumed my seat by the window, and saw Grace Hetherill in the court. She was looking up at my window, and when she saw my face there she waved a handkerchief two or three times and then disappeared quickly behind the wall. Now, let it be understood that I had no idea Grace Hetherill was trying to flirt with me, but I was sure she had made a signal of some kind. Perhaps she intended to encourage me, but I fancied I scarcely needed that; not in the year of our Lord and deep peace 1896.

I heard them fumbling at the door again. The colonel and two of his men appeared.

"You will come with us, if you please," said the colonel, with the stiff, military courtesy which he had never abated since his explosion about the picture.

"I trust it is to dinner, colonel," I said, with some gayety, which I really felt. "This mountain air of yours breeds hunger."

He made neither denial nor assent, but led the way down-stairs. The two men followed close behind me, as if bent upon preserving the fiction that I was a convict or criminal of some kind. Somewhat to my surprise, the colonel led the way into the large room which Grace Hetherill had called the great parlor. A new arrangement of its furniture had been made. A long table with chairs around it had been placed in the centre of the room, and drooping over it from the ceiling was a large Confederate flag. Five or six men, including Dr. Ambrose, all dressed in Confederate gray, were present.

The colonel saw my astonished and questioning look, and said,—

"I told you, Mr. West, that everything was to be done in accordance with military law. The Confederacy would not disgrace itself by acting otherwise. You are to have a fair trial."

All the men had risen to their feet and saluted the colonel. I was invited to take a chair at the foot of the table; all the others took their seats also. Dr. Ambrose again acted as secretary, the colonel presiding, and the court-martial began.

I saw nothing better than to fall in with the spirit of the thing. Let me repeat for the second time that I dislike bruises and undignified struggles, and I

had no choice. Accordingly, I pulled a very grave and long face, and sat in silence, awaiting the questions that the military tribunal might propound to me.

"I think," said the colonel, "it would be just to give the prisoner a full and explicit statement of the charge against him."

"I think so, too," I said. "It would at least be interesting, if not important."

The colonel frowned at my flippancy.

"You, sir," he said, addressing me, "who call yourself Arthur West, of New York City, with what truth we know not, are accused of entering the military lines of the Confederacy in civilian's attire for the purpose of spying upon our fortifications, armaments, and other military supplies, and of delivering such information as you might obtain to the enemy. Is not that true, sir?"

"The war is over, colonel," I said. "The Confederacy perished more than thirty years ago."

"You speak falsely, sir," he said, with some fierceness. "The war is not over, and the Confederacy has not perished. See its flag over your head. I hold my commission from President Jefferson Davis himself, and certainly I have not laid down my arms."

I smiled a little, whistled a bar or two, and gazed at the ceiling. The colonel looked deeply annoyed at my carelessness.

"Be careful, Mr. West," he said. "You are not helping your case by your conduct."

"Colonel," I said, "come to see me in New York, and I'll show you the town."

"Enough of such levity," he cried. "Will you or will you not plead to the charge?"

"Colonel," I said, "it is the 18th of November, 1896, and a very fine afternoon."

"I have warned you once already that you are prejudicing your own case," he cried.

"I deny the jurisdiction of the tribunal," I said.

"Your denial goes for nothing," he said. "Do not enter it upon the record, doctor. Will you say what brought you into these mountains?"

"As I have told you several times," I said, "I belong to a hunting-party, and was lost. I did not know I was near Fort Defiance, nor had I ever heard of such a place."

"Let that be entered upon the record, doctor," said the colonel.

"I have it all," said the doctor.

"Crothers," said the colonel, "put upon the table the sketch which I found the prisoner making this morning."

Crothers obeyed.

"What do you call that?" said the colonel to me.

"I would call that," I replied, "a pretty bad picture of Fort Defiance."

My tone was light, and, as usual, my levity seemed to displease the colonel very much. He warned me for the third time that I was injuring my chances, but I was not impressed.

"That sketch," said he, "shows the situation and fortifications of Fort Defiance. You were found drawing it surreptitiously. I ask you again, what have you to say about it?"

"Nothing, colonel," I replied, "except that when we dine together in New York we will discuss its artistic merits or lack of them."

The colonel ran his hand impatiently through his hair, and again uncovered the scar of the deep wound on his head. I wondered in what battle he had received it, and had a mind to ask him whenever opportunity made the question pertinent.

"Make proper entries on the record," he said to the doctor, "that the prisoner will give only irrelevant answers to our questions."

"It has been done," said the doctor.

The door of the room was opened at that moment, and Miss Hetherill appeared. Her father rose hastily, and his manner showed that he was disconcerted.

"You must retire at once, Grace," he said. "I forbade your presence here."

"Father," she said, "you must stop these proceedings. You must not harm Mr. West."

I rose and bowed in my best manner.

"I thank you for your intercession, Miss Hetherill," I said, "but I can protect myself."

She turned her whole attention to her father, neglecting me. I resumed my seat and looked out of the window, that I might appear to take no notice in case a family jar occurred. It is an immense satisfaction to have a pretty girl interfere in one's behalf, and I was content merely to look out at the river and the yellowing leaves.

The colonel took his daughter by the arm and told her again she must withdraw. She protested, but in tones too low for me to hear the exact words. The colonel was becoming much excited. The matter was ended speedily by the withdrawal of Miss Hetherill, in which I think she was wise, for the gentlemen conducting my court-martial seemed to have made up their minds to go on with the business. This was shown the more clearly to me because when she went out the colonel locked the door. I did not see him do it, as I kept my eyes on out-of-doors, but I heard the key turning in the lock.

"Attention, sir!" said the colonel.

I was observing then some beautiful splashes of red and yellow on the mountain foliage, which appealed to my love of color, and I did not turn my head.

"Do you hear me, sir," said the colonel, provoked, as I meant him to be. "Will you plead to this very grave charge against you?"

"Colonel," I said, "it is a splendid afternoon for a walk, and we might get a fine view from the crest of the ridge yonder. Shall we take a stroll up there together?"

"Gentlemen," said the colonel, "we have given the prisoner every opportunity to speak, and he will not take advantage of it. There is nothing further for the court to do but to render its verdict."

All the men except the colonel and the doctor withdrew to the far end of the room. They talked together a few moments, and then returned to us, Crothers at their head.

"What is your verdict, Mr. Crothers?" asked the colonel.

"Death," replied Crothers.

"So say you all?" asked the colonel.

"So say we all," they said.

"May the Lord have mercy on his soul," added the colonel, in the tone of a judge.

"You seem to be agreed, gentlemen," I said, looking around from the window.

"Undoubtedly," said the colonel. "Mr. Secretary, see that the sentence of the court is entered upon the record."

"It has been done," replied the doctor.

"Then if you have amused yourselves sufficiently, gentlemen," I said, "I would like to go back to my room, as I am tired. I'd thank you also to send me something to eat, as I am hungry, too."

"That much courtesy is due you," said the colonel.

Rising, he led the way, and two of the men closed in behind me, according to the prescribed rule. Thus we marched back to my room, where I was

locked in and left to wait for food, spending such time as I chose meanwhile in reflections upon the fate of a man condemned to death, an advantage that I had never enjoyed in the first person before. I can say with the utmost respect for the truth that my chief sensation was still one of curiosity. I was not accustomed to such adventures, and, as I knew of no precedents, I could make no predictions.

All such thoughts were interrupted by the arrival of Crothers with my supper; and I perceived that a man under sentence of death may become as hungry as one with freedom and many years to enjoy. While Crothers spread the banquet, another soldier walked up and down in the hall, and just before Crothers shut the door I caught the steel-blue of his rifle-barrel. Evidently they were keeping a good guard over me, which seemed to me a waste of thought and strength. But they had kept in mind the principle that it costs nothing to be courteous to a dying man, and had sent me a most excellent repast, from which the prospect of dying took no sauce.

"Mr. Crothers," said I, as I poured a cup of hot coffee and sniffed the aroma of a piece of fresh and well-cooked venison, all mine, "how long have you served Colonel Hetherill?"

"I enlisted in his regiment in '61," replied Crothers, "and he's still my commanding officer. That makes thirty-five years by my reckoning."

"How much longer do you expect to serve him?" I asked.

"Until the war is over," he replied, briefly.

Evidently here was a man of the colonel's own mind and temper.

The very good dinner put me in an excellent humor.

"Mr. Crothers," I asked, "am I to be shot or hanged?"

"You'll have to ask the colonel," he replied, "though I think it's commoner to hang spies than to shoot 'em."

He spoke in a matter-of-fact tone.

"Mr. Crothers," I began again, "do you think I am alarmed?"

"I'd be in your place," he replied.

After this I could not get him to continue any form of debate. He merely sat in obstinate silence while I finished the supper. To mark my disapproval of his manners, I turned my back upon him and resumed my old occupation of gazing out of the window. My sentence of death had made no change in the prospect. The lights and colors on mountain and forest were as vivid as ever. Where the edges of the dying leaves had turned red, the forest glowed as with fire; then came patches of soft brown, and beyond were streaks of yellow gold. It was a beautiful world, unhurt by its wildness.

Crothers took up the tray of empty dishes, and bade me a polite good-night, which I returned without bad feeling. I was rather glad he had gone, since a man who will not talk to me when I want to talk to him annoys me.

While the sun was setting and the night coming on to take its place, I tried to decide how I would avenge myself upon Colonel Hetherill for his treatment of me. To me it seemed a somewhat complicated question, as he had certainly saved my life, though the saving of it gave him no right to the taking of it, and if I injured him I would be sure to injure his daughter, who undoubtedly had shown consideration for me. I gave it up, leaving the problem to its own solution, and continued to sit by the window, looking out at nothing. Thus importantly occupied, I heard the usual fumbling at the door which betokened a visitor. I was guessing whether it would be the colonel or Crothers, when I saw it was neither, but Grace Hetherill. She stopped to close the door very carefully, and when she turned to me she showed excitement. I had risen and was preparing to make the compliments custom demands from a young man to a young woman, when she exclaimed, in nervous tones,—

"Mr. West, you must escape from this house to-night!"

"Escape, Miss Hetherill?" I said. "Where would I go? It is comfortable here, although my movements are somewhat restricted. But out there in those wild mountains I would starve to death."

I spoke lightly, but my manner seemed to increase her apprehensions. She came closer and put her hand upon my arm.

"Mr. West," she said, "you do not yet understand your situation and its dangers."

"I see no occasion for alarm, Miss Hetherill," I said. "Your father has gratified his whim, and I shall not complain of the trouble he has caused me. It might be made a rough sort of jest for him if I carried the news to Washington; but I see no reason why I should do so."

I felt her hand grip my arm in her excitement.

"This is no play, no jest!" she cried. "Do you think that my father looks upon this fort, the weapons in it and the flag over it, as a mere whim? They are the most real of all things to him."

I was impressed by her earnestness and strong feeling. I was about to say that if her father looked upon such things as realities I was sorry for him, but I remembered that I should not speak so bluntly to her father's daughter.

"I tell you they are realities!" she exclaimed. "It is a reality that you are held a prisoner here, a condemned spy; and it is a reality that you are to be shot as such at nine o'clock in the morning."

"What? Is this the truth?" I exclaimed.

"Crothers and another man are digging your grave now," she said.

"How do you know?" I asked, still partly incredulous.

"I have seen them at work," she replied.

I was more impressed than ever. I leave it to all if it is not a trifle hard upon a man's nerves to receive the news that other men are digging his grave for him. Moreover, her manner left no doubts. I was seized with a sudden shudder of the nerves and chill of the blood. I saw that this fanatical old colonel would carry out his farce to the end, and that end was my execution.

"Do you believe me now?" she asked.

"Yes; but what am I to do?" I said, in despair.

"You must leave Fort Defiance to-night," she said.

"Am I to go up through the roof or down through the floor?" I asked.

"Do not jest with your danger," she replied, both reproof and reproach in her voice.

"But when you speak of escape, I see no way to obey you, Miss Hetherill," I said.

"Do you suppose that I am without influence in my father's house?" she said, with some haughtiness. "I have prepared the way, and will lead. You have nothing to do but follow me."

She opened the door again, and I saw that no guard was in the hall. It was not a time to waste energy upon one's baggage or mode of taking leave, and without ado I followed her.

"Step as lightly as you can," she said.

I was willing enough to obey her. She had made me see the truth about her father, and while I was opposed to death under any circumstances I wished least of all to face it very early on a cold morning, and perhaps have my body tumbled into a ditch afterward. This, too, in the year of peace 1896. Accordingly, I shod my feet with felt. We passed from the upper hall to the lower in safety, and reached the front door. Then I saw that in fact she had prepared the way for me. No guard was there, nor did she even need to unlock any bolts. She pushed the door open, and in rushed a flood of the cool night air. I knew then that the wind of heaven was the wind of freedom.

The outside of Fort Defiance seemed to be, like the inside, without guards. The river plashed and gurgled in the dusk, and the dry leaves rustled as the wind blew them upon one another, but that was all. The fort seemed to be asleep. The muzzle of the little brass cannon that swept the drawbridge was hidden in the darkness, and the cannon was without threat.

Miss Hetherill left me at the door a few moments, and when she returned she thrust into my hands a military knapsack which seemed to be well filled.

"It contains food," she said: "you will need it."

I hung the knapsack over my shoulder and followed her, for she was already leading the way to the drawbridge, which was down and unguarded. A few steps took us across. I looked back at Fort Defiance, a solid dark mass, no light anywhere showing that it was tenanted.

"Miss Hetherill," I said, and I was speaking sincerely, "you have done much for me, and I am very grateful, but do not go any farther. I can find my way now, and I will say good-by to you here."

"No," she said; "I will take you out of the valley and put you on your road."

Her tone did not admit of protest, and without a word I followed her. She led the way across the valley directly toward the nearest mountain slope. I will admit that on this journey I was cherishing a feeling of satisfaction. It is not only pleasant to have a pretty girl interest herself in one's behalf, but still pleasanter, if one's life must be saved at all, to have it saved by that same pretty girl.

At the point to which we were trending, the first slope of the mountain was not distant more than half a mile. The path was clear, and we were soon there. I felt like uttering my thanks again, but such words seemed so futile that I remained silent.

"Keep to the southwest," said Miss Hetherill. "Don't forget that. Watch the sun to-morrow, and remember always to travel to the southwest. If you do that you will reach the settlements before your food is exhausted."

"Good-by, Miss Hetherill," I said.

"Good-by," said she.

She was standing before me, and she looked so fair in the moonlight that I stooped down suddenly and kissed her.

I do not know why I did it, I had known her only a day or so, but I had no apologies to make then, and I will make none now.

She stared at me a moment, her face quite red. Then, without speaking, she turned and walked swiftly toward Fort Defiance, while I slowly climbed the first slopes of the mountains.

CHAPTER IV.

AMONG THE PEAKS.

Some yards up I came to a ledge, upon which I sat and took another look at Fort Defiance. I saw a light figure cross the drawbridge, and then up went the bridge itself. I resumed my journey, half walking, half climbing, and a half-hour later, when I looked back again, I was much astonished to see lights blazing at every window of Fort Defiance. I watched for some minutes, but I was too far away to see figures moving or anything else that would tell me the cause of the lights.

Convinced that it was no time for idle curiosity about illuminations, I turned my face toward the southwest, determined to carry out my instructions. Yet I saw readily that my problem was not yet wholly solved. I had escaped from the fort, but I had not escaped from the mountains, which at that hour looked very dark, very bleak, and very lonely. I picked out a large clear star burning in the southwest just above the tip of the highest peak, and made it my guide.

It was rough travelling, but the night was cold, and my limbs had been stiffening in confinement. The sharp air and the exercise were a tonic to me. The blood ran freely through my veins, and I felt strong and buoyant. I resolved to walk all night, a resolution born partly of necessity, for I could not lie down and sleep without finding every joint stiffened in the morning by cold.

With my eyes fixed on my star, I tramped steadily to the southwest. It was not an especially dark night, but I kept as closely as I could to the valleys or rifts, and the up-lift of the peaks above me hid half the skies. I am not

superstitious, and I think I possess at least average courage, but the silence and solemnity of the mountains awed me and made me lonely and afraid. I seemed to be alone in the universe, save for the misty peaks, which nodded to each other and never noticed me. It may be flattering to one's vanity to feel that he is the only man in the world, but it soon grows tiresome. I longed for company, a chum, somebody to talk to me.

I may be skilful in analyzing the feelings of others, but I have little success with my own. As the chill loneliness thickened around me, I wished again for Fort Defiance. Out of danger now, the danger that I had been in seemed so little, incredible perhaps. After all, I might have yielded too easily to a frightened girl's fears. But she had been frightened on my account. That was a tender thought. I smiled in the darkness at the thought and the memory of that early kiss, for which I was not sorry.

The cold darkness of the mountains and the warm walls of Fort Defiance began to contend for first place in my mind. The belief that in the flush of the interview with his daughter I had overrated the fanaticism of the colonel grew, and my sense of loneliness egged it on until it became conviction.

The strength and courage which I had felt at the start waned. The cold slid into my bones and chilled the marrow. I sat for a few moments on a big stone at the bottom of a great cleft, that I might rest myself. Over the knife-edge of the tallest ridge, a moon very white and cold looked at me as if wondering what I was doing in an otherwise deserted world. To this I could return no answer. All my intentions were failing; I was uncertain of myself. The advice to me to push on continually to the southwest had been clear and decisive, and I had been following it most diligently for at least three hours. But there was my star in the southwest burning as brilliantly as ever and also as far away as ever. Above me were the dusky skies, the moon calm and cold, and about me was the wilderness. I shut my eyes and saw my room in Fort Defiance, a cell still, but sheltered and warm.

The wind began to blow. It had a sharp edge of ice, and I shivered. Then I sprang up in fright as a great groan came down the cleft, passed me, and went on among the mountains, through valley and valley, between cliff and cliff, and from peak to peak. I knew, after my first start, what it was, but it frightened me as if it had been a ghost, though I am a full-grown man, and,

as I said before, I think I have at least average courage. It was the wind, gathered and compressed in the narrow deep ravines between the tall cliffs, and driven on by other winds behind, until it cried out like a man in deadly pain. Not until then, when the mountains were awake and groaning, did I comprehend how deep and intense may become the sense of desolation. I had noticed the wonderful repetition of the echoes when I fired my rifle to attract the attention of the colonel, but at night these echoes were deepened and carried faster from peak to peak and ridge to ridge. As the wind gained in strength and swept through the trees and bushes on the slopes and crests as well as through the ravines and valleys, new tones were added, and I listened to the chorus of the mountains. The groan changed to a deep bass; with it were mingled the flutter and rustle of the dry leaves as the wind blew them together, leaf on leaf, and the higher note of a wandering breeze as it escaped from a ravine and swept triumphantly over ridge and peak.

I was content to listen awhile to the music of the mountains, but I found that my joints were growing stiff with cold. One needs more than music, however sublime, on a dark night in November, unsheltered save by the skies. I took out some food, ate it, and resumed my journey without much courage, however, I will confess. My star was still there, but, like the moon, it was unsympathetic and cold, and it travelled due southwest as fast as I.

I think I was a bit shaken by my situation and my inability to drive away the sense of desolation. It is easy enough to say that superstition and all such kindred things are folly, as perhaps they are; but put a man down where I was, let him go through what I had gone through, and he will have a ghost gibbering at him from every peak. So, when I saw a light flaming on a crest where no light had been before, I was not at all sure whether I saw it with eyes real or imaginary. It was no star; the flame was too bright, too red, and flickered too much, for that. Presently a light blazed up on another hill-top, and then on a third, and then on a fourth. They were moved about as if signalling to each other, and I was positive that I was growing light-headed. It would require no common, normal pair of eyes to see so many lights dancing a jig. All the hill-tops seemed to be afire, and I was quite sure that was not natural.

The sound of a trumpet, loud, clear, and penetrating, mingled with the song of the winds, and swept through the mountains, echo after echo. The

military note rose above all the rest, and there by the first light, which formed the background for it and made it visible, I saw a human figure. I had no doubt that this was the man who blew the trumpet, and it meant that the colonel and his men were seeking to retake me. The trumpet was blown again, and all the lights except the first were extinguished.

As I said, I am unable to analyze myself, and while a few moments ago I wished to be back at Fort Defiance, I wished nothing of the kind now that I knew the colonel and his men were seeking to take me there. I pushed myself among some bushes, determined that I would escape.

With mountain heaped on mountain and the night helping, it would seem that it was an easy enough matter for me to escape; but I was not so sure. I had followed perforce some sort of path or trace, because it was the only way in which I could go, and doubtless these men knew the way well.

The trumpets blew one more blast, and from my covert I saw the last light extinguished. Listening intently, I could hear only the sob of the wind down the great slash in the mountains, at the bottom of which I lay. I supposed that the flaming up of the lights and the blowing of the trumpets had been some sort of signal to draw the men together. I rose, but I could not see them either. I thought once of trying to climb the side of the mountain, but I feared a stumble or a slip, the noise of which would draw them to me. I pressed farther back into the bushes, but just as I made myself snug several men turned the angle of the ravine, and one of them held up a bright lantern. Its flame fell directly upon me.

"Take aim," shouted the colonel.

The six who were with him covered me with their rifles. But I had no desire to be shot.

"It's all right, colonel," I said. "I'll surrender. I'm your prisoner."

He ordered the men to lower their weapons. I walked out of the bushes toward the colonel. There was some comfort in the company of my kind, even if I was to be the prisoner and they the free men, an inequality which I thought was not deserved.

"We retook you more easily than we thought," said the colonel.

"Then double my debt of gratitude to you, colonel," I said. "You may have saved me again from death by starvation."

He said nothing to this, and I added, "Suppose we rest a little. I am tired."

My bones in truth were weary; we were a long way from Fort Defiance, and the road was rough. I contemplated the journey with dismay.

The colonel, who seemed to be highly pleased at my recapture, was in good temper. He took a long flask from his inside pocket and shook it. A cheerful gurgle came forth. He drew the cork with a loud plunk, and a pleasant odor permeated the air.

"Try that," he said, holding out the flask.

I tried it, and great was the result thereof. As the rich red liquor trickled down my throat, I could feel strength flowing back into muscle and bone, and a warm glow crept through all the veins of my chilled body.

I handed the flask back to the colonel with my heart-felt thanks.

"I think I will try a little myself," he said, and the pleasant gurgle was heard again.

"Colonel," I said, "you may shoot me to-morrow, but for heaven's sake don't make me walk all the way back to Fort Defiance to-night."

The liquor had put him in a still better humor.

"I will not," he said. "Besides, I am tired myself."

He gave a few directions to his men, and they began to gather brushwood, which was scattered about in abundance. They heaped it up in a sheltered corner of the ravine, and the colonel, taking the candle out of his lantern, touched the flame to the dry boughs. Up it blazed, and, the wind catching it, the eager flame leaped from bough to bough. The wood snapped and cracked as the fire seized it, and the blaze, rising high, threw its warm and friendly light upon our faces.

Though a captive and with only twelve hours or so of life before me, according to the colonel's limitations, I achieved comfort. I made myself at

home, and, pulling up a billet, sat down on it before the fire, where body and eyes could feast on its warmth and light.

The fire by contrast made the darkness beyond its radius darker. The colonel shivered, and then imitated my example, turning his palms to the flames.

"Makes me think of the winter of '64," he said.

"Which was a long time ago," I replied.

"But it may come again," said he.

"Never," said I; "the cause is dead and buried, colonel, and the mourners are few at this late day."

He turned his head away impatiently, as if he would not argue with a prisoner. His men kept silent too. I had hoped they would hear, but I could not say. They as well as I had brought food with them: we broke bread and ate.

The fire, which rose yards high, and crackled as it ate into the wood, threw streaks of light on the near slopes. Beyond, the darkness had settled down over peak and ridge, and the moon was behind a veil of clouds. The wind, rising again, moaned loudly down the ravine and swept the dry leaves before it. I would not have escaped if I could.

"Winter will soon be here," said Crothers, who sat on one side of me.

"Perhaps it's as well," said Colonel Hetherill. "It will make it the harder for any enemy to reach Fort Defiance."

A blast of wind struck me on the back of the neck and slipped down my collar like a stream of ice-water. I edged up within scorching distance of the fire.

"It is cold," said the colonel, replying to my thought as if I had spoken aloud. He too edged up to the fire, and all his men did likewise. No one regarded me with hostile eyes. For the moment the military laws of the Confederacy rested lightly. I don't understand how people can fight in the dark and when it's at zero.

Our faces were warm,—a little too warm, perhaps,—but our backs were cold. I suggested to the colonel that we build another fire a few yards off and sit between the two. He looked at me approvingly, and even said nothing when I helped to gather brushwood for the second fire, just as if I were one of the party and could go and come where I wished. While I was busy thus, I noticed that he was looking at me very intently and twisting his long white moustache as if he were in doubt. I guessed that he would have something to say to me soon; and I was not wrong. We lighted the second heap of wood, and the blaze sputtered and roared as if it would outdo its comrade ten yards away. We lolled in the heat for a few minutes, and then the colonel, as I had expected he would, beckoned to me.

We went on the far side of the second fire, where none of the men would hear us.

"What is it, colonel?" I asked, politely. "Can I help you in any way?"

"You can," he replied, "and in helping me you will help yourself at the same time."

"Then it ought to be easy for us to strike a bargain," I said.

"I want some information from you," said the colonel. "Your escape was discovered soon after it was made, but that escape would not have been possible without assistance. Name the man to me, and I will spare your life; I will send you back to your own country."

My first impulse was to speak violently. This was the first time he had touched the quick. But unrestrained anger is seldom worth the while.

"Colonel," I said, "I may be a Yankee spy, as you call me, but you can scarcely expect me to tell you that." Nor would I have told him, even had not the traitor been his own daughter.

The colonel looked confused, and hesitated. Presently he said, "I should not have made you the offer, and I apologize; perhaps I have underestimated you."

This was not very flattering, as it could be construed different ways, but I thanked him nevertheless, and we went back to our good position between

the fires. The colonel was silent and looked thoughtful. I guessed that he was trying to divine the traitor and would not let the matter drop.

I had eaten heartily, and the food, the heat, and the weariness together made a strong soporific. My head nodded, and my eyelids drooped. The colonel, too, looked as if he would like to go to sleep. The men had blankets with them, and I made a proposition.

"Colonel," I said, "give me a blanket and let me go to sleep. You needn't guard me; I pledge you my word I won't attempt to escape to-night."

He took one look at the banked-up darkness. The wind made a long moan down the ravine.

"I don't think you will try it," he said, dryly. "Crothers, give him a blanket."

Crothers tossed me the blanket. I rolled myself in it and went to sleep.

Far in the night I awoke. I might have gone back to sleep again in a moment or two, but a bough burned through fell into the ashes, sending up a shower of sparks. I held open my sleepy eyes and looked around at the colonel's little army, which to the last man lay stretched upon its back or side fast asleep. Two high privates were even snoring. The wind was still strong, and its groans as it swept through the ravine rose to a shriek. The fires had burned down a bit, and were masses of red coals.

Colonel Hetherill was lying next to me. The light from the fire fell directly upon his thin, worn, old face. In my soul I felt pity for him. His exposed hands looked chilled, and his blanket seemed light for a man whose blood had been thinned by age. My own blanket was heavy and wide. I threw the corner of it over him, and in another minute I yielded again to sleep.

I was the last to awake in the morning, and I do not know how much longer I would have slept had not the colonel pulled me violently by the shoulder. The sun was risen already above the mountains, and peak and ravine shone in the light. One of the men had produced some coffee and a small tin coffee-pot, and was making the best of all morning drinks over the fire. Another was frying strips of bacon. Evidently the Confederate army meant to treat itself well. I sniffed the pleasing aromas, bethinking me that as the only prisoner present I was entitled to my share.

The colonel did not neglect me. When my turn came the tin cup filled with coffee was passed me, and I ate my due allotment of the bacon. The colonel, however, was stiff and restrained. His military coolness returned with the daylight, and his little army reflected his manners. My attempts at conversation were repelled, and soon it became apparent to me that I was the condemned spy again.

The day was cold, but very bright and well suited for our rough walking. The breakfast ended, we abandoned the fires, which still glowed red in the ravine, and began our return to Fort Defiance, Crothers leading the army, while I walked in the centre of it.

Ours was a silent walk. If their feelings had changed with the day, so had mine. I regretted that I had not escaped. In the bright sunlight the mountains did not look so unfriendly and formidable. But I made up my mind to ask few questions and to abide the issue.

Near noon I saw the same column of smoke which had once been such a cheering sight to me, and in a quarter of an hour more I looked down on Fort Defiance and its peaceful valley. The place had lost none of its beauty. The glow of red and brown and yellow in the foliage was as bright and as deep as ever. The little river was fluid silver in the sunshine. We paused a few moments at the last slope to rest a little: the quiet landscape, set like a vase in the mountains, seemed to appeal to Colonel Hetherill as it appealed to me. We were standing a little apart from the others. I said,—

"It is too much like a country-seat, colonel, to be invaded by an enemy."

"I thought once it was secure from invasions," he said, looking at me suspiciously, "but since there are traitors within my own walls I must prepare for anything."

He spoke as if he intended to make trouble about the matter, and, since I had no fit reply, I said nothing. We descended into the valley, and when we crossed the drawbridge we met Grace Hetherill standing at the door. She expressed no surprise, but looked at me reproachfully. I felt that she wronged me, for certainly I had tried to escape.

I was sent to a new room, much like the other, but with a heavier door. The window, well cross-barred, looked out, like all the other windows, upon the

mountains. When I had been locked up an hour Miss Hetherill came.

"You see I am back, Miss Hetherill," I said, jauntily. "Who comes oftener than I?"

"Why did you not escape when I gave you the chance?" she said, with the utmost reproach in her voice.

I felt hurt at her manner. I knew she was thinking less of my death than of her father's responsibility for it. I hold myself to be of some value, and did not wish to be cheapened in any such manner.

"I did my best to escape, Miss Hetherill," I said, "but the activity of the Confederate army was too great for me."

Her eyes flashed with such anger that I saw my mistake at once.

"I beg your pardon," I said. "I will not jest again at the colonel's faith."

"I have come to tell you," she said, "that you are in as much danger as you were yesterday. I do not think my father will alter his sentence."

"But first," I said, "he is going to find out the traitor who helped me to escape last night."

I supposed, of course, that she would tell him her part in it, having nothing to fear, and I was surprised when she answered me.

"He has been endeavoring to ascertain it already," she said, "but has failed. He thinks Dr. Ambrose is the man, and both the doctor and I are willing for the present to let him think so. You will under no circumstances tell him that it was I. Will you promise me that?"

"I will promise, since you ask it, but it seems strange, Miss Hetherill."

"It is because I wish to be free to help you. If my father knew it was I he would lock me up until you were—were——"

"Executed."

"Yes, that is it, though I did not like to say it."

I could not say no to such a plan, for I valued my life, and any one in my place would have been acute enough to see that Grace Hetherill would be the most powerful friend I could have inside of Fort Defiance. The doctor too must be weakening in his Confederate faith, if he were willing for my sake to rest under his commanding officer's suspicion. But that might be done for love. Pshaw! he was too old.

I thanked her very earnestly for her endeavors to save me.

"I will seek to delay action on my father's part," she said. "Our chief hope rests in that."

I trusted that she would secure the delay, indefinite delay. When the door was opened for her to leave I saw a sentinel on guard in the hall, and became convinced that the colonel was taking very few chances with me.

CHAPTER V.

A CHANGE OF SITUATIONS.

Crothers as usual brought me my meals, and in that respect I was well treated. The night passed without event, and the next morning I was allowed to take a walk around the fort between Crothers and another soldier, but I saw nothing of either the colonel or his daughter. I tried to pump Crothers, but he was proof against my most skilful questions, and when I returned to my room I could boast no increase of knowledge. Yet I was not much depressed. I comforted myself with the old reflection that it was the year of peace 1896, and I would not become really alarmed until I stood up before a file of the colonel's men and looked into the muzzles of their rifles.

I received a visit the next morning from the colonel himself. His manner was still of a piece with that he had shown on the return march from the mountains, marked by a certain haughtiness and reserve differing much from the fiery temperament characteristic of him.

"Well, am I to be shot to-day, colonel?" I asked, and I think I asked it cheerfully, for, mark you, I had returned to my old state of incredulity.

"Not to-day," he said. "I have decided to postpone it until I find out where the treason in my garrison lies. You can see that your death might be in the way of my investigation."

I could see it with ease, and I was glad that it was so.

He asked me a lot of questions which he intended to be adroit, but I saw their drift clearly enough, and led him further astray. When he was through

he knew less than ever about my rescuer, and I let him think it was one of his men.

"I shall discover the man by to-morrow," he said, with a show of confidence which was but a show, "and his fate shall be severe enough to put a stop to any leanings others may have the same way."

Three days more passed in this manner. I was permitted to take two walks daily around the fort in the company of Crothers and another man, but, as before, I could obtain no information from them, and I remained in ignorance of the colonel's progress or lack of progress with his secret service.

On the fourth day my door was abruptly thrown open, and Grace Hetherill entered. Her face showed great excitement. The door was not closed behind her, but stood wide open, and I noticed that no sentry was in the hall. I was convinced that something of importance had happened.

"Mr. West," she said, "we need your help."

"My help," I exclaimed, involuntarily. "How can I, who need it so much myself, give anybody help?"

"But you can," she cried. "There is trouble in Fort Defiance."

Then, her first flush of excitement over, she told me the story calmly. She was not long in the telling.

Her hint to her father that Dr. Ambrose might have been the man who assisted in my escape had produced greater results than she expected. The old colonel had watched the doctor closely, and at last had accused him of treason to the Confederate government. Thereupon the doctor, who was superior in intelligence and information to the other men, and knew what was passing in the world, had advised him to free me, and to haul down the stars and bars, as the cause was lost beyond the hope of revival.

"My father flew into a terrible rage," said Grace. "He ordered that Dr. Ambrose be locked up at once, and it is his intention to have him shot when he shoots you."

"Miss Hetherill," I said, "you must tell your father that Dr. Ambrose had nothing to do with my escape."

"That would do no good now," she said, "and might do harm. It would not help Dr. Ambrose, for my father regards his proposition to surrender as the worst treason of all, and if I were to say that it was I and not the doctor who helped you, he would not believe me."

This put a new phase on the matter. I felt very sorry for the doctor, who had got himself into trouble on my account. I did not know what to say, but Miss Hetherill interpreted my look.

"Do not fear for Dr. Ambrose," she said. "Some of the men have begun to be of his way of thinking, and my father will not be able to carry out his sentence against either the doctor or you."

I understood at once. A revolt was threatened in the camp, and her fear was neither for the doctor nor for me, but for her father. I felt rather cheap.

"I will help you all I can, Miss Hetherill," I said, a little stiffly, "but I fail to see anything that I can do. As you know, I am a prisoner here."

"But you are not as strictly guarded as you were," she said. "My father's rage against Dr. Ambrose has withdrawn his attention from you, and within a day you may have another chance to escape. He wants you to come now and testify against Dr. Ambrose."

"I cannot do that," I said.

"I do not want you to do so," she said, quickly. "You must say that you made your escape without help, that you picked the lock of your door,—or anything else you choose to say."

It was a falsehood she asked me to tell, but I was willing to tell it, since the interests of four persons were involved in it,—hers, the doctor's, mine, and, not least of all, the colonel's. Truly my coming had aroused a mighty commotion in the house of Colonel Hetherill, C.S.A., and perhaps too had opened it to new ideas. It had never occurred to me before that I was such an important personage.

I followed Miss Hetherill to the second sitting of the military court in the trial-room, though this time as a witness and not as the accused.

The colonel was majestic at the head of the table. He was in a splendid gray uniform, gay with gold lace, as if he deemed the occasion worthy of his best appearance. Crothers had taken the place of Dr. Ambrose as secretary, and the doctor himself was at the foot of the table.

The examination was brief, and to the colonel very unsatisfactory. I made a poor witness. I denied that any one had helped me, and the doctor with equal emphasis denied complicity. The colonel frowned at me, but the doctor received the larger share of his attention, and I was of the opinion that the colonel considered him a greater villain than myself, as I was an enemy by birth, while the doctor was a household traitor.

"You do not deny making to me the proposition that we surrender to the Federal government?" finally said the colonel.

"Not at all," said the doctor, firmly. "That was my suggestion, and I repeat it. We alone are holding out. What chance have we ever to carry our cause through to success?"

Colonel Hetherill looked around at his men as if he feared the effect of those words upon them. They were impassive, though I inferred from what Grace had said that several were beginning to share the doctor's way of thinking.

"Your answer," said the colonel to Dr. Ambrose, "is sufficient proof of treasonable designs. The answer itself I consider treason. I will hear no more."

He promptly dissolved the court, ordered Dr. Ambrose and myself to be locked up again, and refused to listen to anything his daughter wished to say. What further steps he took I did not know then, for under escort I passed on to my room and was out of sight and hearing.

That evening Grace came to my room again, and, as before, she was visibly under the influence of strong emotion.

"You must escape again to-night," she said, "and this time you must not be overtaken. I have arranged everything, and it will be easy enough for you to reach the mountains."

"What will become of Dr. Ambrose?" I asked.

"We will save him, too, though I do not yet know how," she said.

The doctor had taken his risk partly on my account, and I did not feel like abandoning him in danger. I am willing to admit also that I wanted to see how events at Fort Defiance would culminate. So I refused to leave the fort. My refusal greatly disturbed Grace, and she begged me to go. Her cheeks were flushed, her eyes luminous, and she looked very beautiful.

"Would you have me think of myself alone?" I asked. "It is true that I seem to have brought trouble here, but I can't cure it by slipping away to-night. I mean to stay."

She had nothing more to say, but one look she gave me seemed to approve of my decision. She left the room hastily, and I did not hear the key turn in the lock. I tried the door, and found that it was not locked. Through neglect or intention, I was free to go about Fort Defiance, and I inferred that the colonel's affairs in truth were in a critical state, if so little attention was paid to me. I looked out in the hall, but saw no one. I walked lightly to the top of the stair-case, but, hearing voices below, concluded it would be best to return to my room. From the window I saw that the drawbridge was up, and I doubted the chances of escape, even had I wished it.

I remained there an hour or so, trying to decide upon the wisest course. Unable to come to any decision, I went into the hall again for lack of something better to do. From the top of the stair-case I heard voices in loud and excited conversation. I crept half-way down the steps. I stopped there to listen further, and feeling sure that some event of great importance had happened, I walked boldly all the way down.

The front door, which looked out upon the little brass cannon, was wide open. Grace and Crothers stood near it, talking in hurried and excited tones. A half-dozen soldiers were about them, and occasionally they said something as if by way of suggestion. They paid no attention to me until I came so close that Grace herself could not help noticing me.

"Oh, Mr. West!" she cried. "We are so glad you are here now!"

Naturally I was full of interest and curiosity, and asked the cause of the trouble. Then they told me that Dr. Ambrose had escaped, by the connivance of some one, I guessed, and had fled to the mountains. The colonel, discovering his escape, had called upon his men to pursue him, and if necessary shoot him on sight. They had refused unanimously to go, and the colonel in his rage had taken his old army rifle and had gone alone.

Here in truth was a pretty muddle. The colonel's state of mind was such that without doubt he would shoot the doctor if he found an opportunity, which would be a double tragedy to all the people of Fort Defiance.

"The colonel must be pursued and overtaken," I said.

"At once," said Grace, with an emphasis that showed I had only seconded her own argument.

Crothers and all the others looked at me as if waiting for a suggestion. I seemed by an easy transition to change from the prisoner of Fort Defiance to its chief. Since they looked upon me as such, that I decided to be.

"What road did the colonel take?" I asked of Crothers.

"There is only one passable way out of the mountains," replied Crothers; "the one you followed. We know that both the doctor and the colonel took it."

I saw a look of intelligence pass between him and Grace, and I wondered no longer at the doctor's escape or his destination. Our duty and the method of doing it were plainly before us.

It required but a few minutes for me to organize our search and rescue expedition. I made Crothers my lieutenant, and took all but four men, leaving these to care for the house. Food enough for several days and blankets for the night were collected hastily, and then we were ready. Miss Hetherill approached cloaked and hooded. To my protest she replied with much firmness that she was going with us.

"But the road over these mountains is not fit for a lady to travel," I said.

"I have been over that road often, and I know these mountains much better than you, Mr. West," she replied.

I could not dispute her assertion, and moreover her presence would be useful to us in certain contingencies. She was a strong, active girl; and I made no further objection. We left the house; the drawbridge was lowered to let us pass, and when we had crossed was raised again.

In a few minutes we were out of the valley and in the mountains, following the old road. As it was my second journey, I saw how easy it was for the colonel and his men to pursue and overtake me. It was the only real road through the mountains, and one followed it as naturally as the waters of a brook flow down its channel.

"How long a start of us has the colonel?" I asked.

"Not more than an hour," replied Crothers; "but he is strong, in spite of his age, and a good mountaineer. I guess he can go faster than we can."

It is true that one man, other things being equal, can travel faster than half a dozen who stick together, and in it lay the danger that the colonel would out-foot us. But there was consolation in the thought that Dr. Ambrose had the same advantage.

It was an indifferent night, neither very clear nor very dark. There was light enough to show the peaks and the ravines, but only to distort them. I let Crothers, who knew the way, take the lead, and I dropped back by the side of Miss Hetherill. We were silent for some time; then I made a lame apology for blundering upon Fort Defiance and bringing such trouble to its inmates.

"It is not your fault that you came, Mr. West," she said, "and even if you had come by intention we would have no right to complain. Something of the kind was bound to happen some day."

I was glad that she admitted the abnormal conditions of Fort Defiance. That she knew them was obvious, for she had passed but little of her life there and knew the swing of the world.

We made speed, despite the roughness of the way. Some mists or fine clouds sifted before the moon, and the visible world became small. But we went on without uncertainty. The fugitive could not well turn from the path, nor could the pursuer.

I saw Crothers looking up at the white, silky clouds: once he shook his head doubtfully, but I did not ask him his thought. With plenty of company, the mountains did not impress or awe me as on the night of my flight. Once our course dipped into a little valley down which a brook trickled. In the soft earth on either side of it the vigilant Crothers saw footsteps which he said were those of two men. We knew the two men must be the doctor and the colonel.

"I should judge from those footprints, though I can't tell precisely," said Crothers, "that we haven't gained anything on them."

This was somewhat discouraging, and our enthusiasm did not grow when the path, after leaving the valley, or rather slit in the hills, led up a very steep and long slope. Our muscles relaxed under the strain, and the breath came in irregular puffs. I was very tired, but I was not willing to own it, especially as I saw Grace walking with still vigorous step. She had told the truth when she said she was a better mountaineer than I.

The mists thickened. The moon was but a faint glimmer through them, and they drifted like lazy clouds. Our world narrowed again, and instinctively we walked very close together. It was like a fog at sea; the damp of it carried a raw penetrating chill. There was no wind to moan or sing through the ravines; the mountains were silent save for ourselves. Crothers suggested a light, and produced from under his coat the torch with which he had provided himself in view of such emergency. It was a long stick, soaked in some compound of tar and turpentine, and when he lighted one end and held it aloft it burned with energy, casting a bright, cheerful light.

Nevertheless we shivered in our clothes; the chill in the air was insistent, and the mist was soaking into the ground and the autumn foliage. All the world seemed to be a-sweat, and, poor woodsman as I was, I knew that this had its perils. Pneumonia is not picturesque, but it is very dangerous.

Crothers looked at me several times as if he expected me to make a suggestion, but, though by common consent I was the leader of the party, I waited for him to make it, as he knew more about mountains and forests than I. But we plodded on for a long time before he spoke. Then he announced that we must stop for a while and build a fire.

"If we don't," he said, "we'll be soaked through and through with the cold mist, and in another hour some of us will be shaking with the chills and fever."

Grace protested against stopping. She was in the greatest alarm lest a tragedy should happen ahead of us, but, while we felt the same fear, we recognized also the truth of the old maxim about the futility of too much haste. I pointed out the dangers to her, and urged that her father probably had sought shelter somewhere before this. She was compelled to yield, not to my arguments necessarily, but to her own judgment. I often think what a jolly world this would be if our judgment and our wishes were always agreed.

We chose a somewhat sheltered spot, which was not difficult to find in a region of hill on hill, criss-crossed with ravines and gullies, and gathered heaps of brushwood. The fire was much more difficult to light than on the night when I was the colonel's prisoner, but we set it to burning at last, and glad we were when the flames rose high up in the chilly darkness.

We refreshed ourselves with a little supper. Then Crothers insisted that some of us, and especially Miss Hetherill, should get a little sleep. Again she showed herself a wise girl by trying to obey, despite her wishes. We made her a bed of blankets between the fire and a cliff, and, though she said she would not be able to sleep, in half an hour she slept. As she lay there with a bit of her pale, weary face showing above the blankets, I felt very sorry for her, far sorrier than I had ever felt for myself, even when under sentence of death; I could see the reality of her trouble, and I had never believed fully in mine.

All the men except Crothers and I and a third rolled themselves in their blankets and slept. I sat by the fire, wondering what the outcome of it all would be. I noticed that Crothers continued to look up uneasily at the skies

and the clouded moon, and at last I asked him what he might have on his mind.

"Bad weather," he replied, briefly.

"We have that already," I said, pointing to the cliffs soaking in the wet mist.

"More coming," he said, putting on a very weatherwise look.

"What do you expect?" I asked.

"Maybe snow, but more likely sleet, and that, too, before morning," he replied. "It's early for such things, but all the signs point that way."

I asked him no more. This was most unpromising, and gave full warrant for his grave looks. The mists were lifting, though very slowly, and were gathering in clouds above us. The peaks were ghostly gray, and the moon narrowed to a half-rim of steel and then disappeared altogether. The dampness remained in the air, but the cold was too great for rain. As Crothers said, either snow or sleet would come.

I suggested to Crothers that we make some sort of protection for Miss Hetherill. We built up little walls of brush on three sides of her and covered them over with the same material. She slept so heavily from exhaustion, poor girl, that she never awakened to our noise, and when we finished our improvised hut our satisfaction was all the greater because we had not disturbed her at all.

Then we built up the fires and waited for what might come. I dozed awhile, and awoke to find that the clouds had thickened. All the peaks were hidden by them, and there was some wind, just enough to make a subdued moan. Crothers said it lacked about two hours of day. I noticed that he had put the men at work again, and they had gathered brushwood sufficient to make the camp-fire of a regiment.

"The clouds will do what they are going to do very soon," said Crothers; and he was right. Presently we heard a patter upon the dry leaves like the falling of dust-shot. Little white kernels rebounded and fell again. One lodged in my eye, and I winked until I got it out. The patter increased; the dust-shot turned to bird-shot.

"Hail," said Crothers. "We're in for it."

We woke all the men and made shelter for ourselves as best we could in the lee of the cliff. Another blanket spread over the top of Grace's rude bower was sufficient protection for her. Soon we had a fine downpour of hail. It was like a white bombardment, from which we were safe within our works. I would have been content to watch it, had it not put such obstacles in the way of our pursuit. The ground whitened quickly under the fall of the hail, and by and by, when the wind shifted to the south, the clouds discharged rain instead of hail. This was no improvement, and in fact its probable sequel was what we dreaded most. The shift of the wind came again, and then happened what often happens in our fickle climate: the rain which covered everything turned to ice under the wind from the north, and in an hour the earth was clad in a complete suit of white armor.

The sun was just rising above the last peaks. Every cloud had gone from the sky, and the day, hidden before by the wall of mountains, seemed to come all at once. Every ray of the sun was caught up by the sheet of white and gleaming ice and reflected back. Our eyes were dazzled by the brilliancy of the morning, for the ice covered everything. Every leaf, every twig, was encrusted with it. It was all very beautiful, and all very dangerous. Mountain-climbing on sheets of ice is a slippery business.

As usual, I turned to Crothers for advice.

"We'll have to creep along as best we can," he said. "But, while we can't go fast, neither can the doctor nor the colonel."

This was the one redeeming point of the situation. Whatever affected us affected both the pursued, and we remained on an equal footing. We awoke Grace, who was astonished and dismayed at the sight of the earth cased in ice. Then we had a little breakfast, and prepared to resume our dangerous pursuit.

I had heard of Alpine climbing, and, though I had never done any of it, the virtues of an alpenstock were not unknown to me. We selected slender but stout sticks from the brushwood, sharpened the ends, and, having hardened them in the fire, made our start, each thus provided. It was treacherous work, and our falls were many, but we were satisfied to escape with mere

bruises, for one might easily pitch over a precipice or tumble down a long, steep-hill slope and become a mere bag of broken bones.

The sun shone in splendor, but the rays were without warmth. They were white, not yellow, and a white light is always cold. The brilliant reflection from the ice-fields forced us to keep our eyes half closed, if we did not want to be blinded.

CHAPTER VI.

AT THE HUT.

The way was still certain, a rude path coiling among the hills, from which the sheets of ice glistening like new glass, and as treacherous, forbade us to turn. Sometimes the wind would blow, and the ice-clad bushes would rattle together to the tune of castanets. Our stock of bruises grew with steadiness and certainty, but we could boast of progress.

Once the path dipped down between two peaks of unusual height. The wind was blowing rather sharply at the time, and from the white head of the higher peak on our left came a faint rumble. Crothers showed alarm and urged us to greater speed. I half guessed what he meant, and lent Grace an arm to hurry forward. The rumble grew to a roar, and we had just turned the dangerous defile when the avalanche plunged down the slope into the path we had left, setting all the echoes astir and sending up a cloud of white snow-dust. I am of opinion that several tons of valuable ice and packed hail were wasted in that drift, but as we escaped it all perhaps we have no right to complain.

We passed the spot at which I had been retaken, and thence the way was new to me. But its character did not change. The untenanted mountains seemed to roll away to the end of the world.

"We ought to reach the hut by the middle of the afternoon," said Crothers.

"What's the hut?" I asked, having heard nothing before of such a place. Then Crothers explained that it was a rude little cabin which the colonel had erected beside the path, to be used as a stopping-place on the way to the outside world, or as a lodge on hunting expeditions. He was hopeful that we

would find the colonel or the doctor or both there. It seemed to me very probable that we would.

Grace, who had been somewhat down-hearted, though she never complained, cheered up at the prospect of the hut, and in truth all our little army pressed forward with fresh zest and enthusiasm. Hope is easily able to pin itself upon little things. We walked and slid along at much better speed, and Crothers even told stories of winter campaigns, though he was forced to admit that he had never found skates quite so necessary as they seemed to be now.

Our path led directly toward a ridge which seemed to block the way like a wall.

"Up there on the comb of that ridge is the hut," said Crothers.

Though my muscles complained and my bruises were as numerous as the spots on a leopard, I was full of ambition to reach this little lodge of logs, which seemed to me to be a fit home for some Robinson Crusoe of the mountains. Presently Crothers uttered a joyful grunt,—he never rose to the dignity of an exclamation,—and pointed to a fine blue trail of smoke rising like a white plume from the slender comb of the ridge.

"That's from the hut," he said, "and somebody's there, sure."

His logic seemed sound. The smoke had a most comfortable, home-like look. It was a bit of warmth and cheer in the cold, white wilderness. It encouraged us so much that we were willing to wager we would find both the colonel and the doctor there, good friends again, and ready to return with us to Fort Defiance.

As we advanced, the column was defined more clearly against the sky, and Crothers was positive that it came from the hut.

"It's built in a little patch of woods on a level spot of about a quarter of an acre," he said, "and my eye says the smoke rises straight from that spot."

By and by, as we climbed the slope, we could see the hut itself, coated with ice like the trees. The smoke was coming from the little mud chimney, and we guessed that a fine fire was blazing on the hearth. I, for one, began to

wish that I was sitting in front of that same fire, listening to the popping of the dry wood as the flames ate into it. But Grace outstripped us, in so far as her cause for anxiety was greater than ours. She ran forward, pushed open the door of the hut, and sprang inside. We heard a cry of disappointment, and, following her, found the hut was empty, save for ourselves.

Upon the stone hearth the fine fire that I had pictured to myself was really blazing. Upon a bench lay some scraps of bread and meat, but the host, whoever he might be, was absent.

It was a little place, not more than seven or eight feet square, with a roof that the head of a tall man could touch. Two or three deerskins were on the floor, some antlers were fastened on the wall, and besides the bench there were three rude little stools. It was not exactly a drawing-room, but it was a warm and hospitable spot in the wilderness. At least it seemed so to me. Grace sat down on one of the stools and leaned her head against the wall, too brave to cry, but not strong enough to conceal all her disappointment. She had been sure that we would find the colonel in the hut.

"Since the landlord of the hotel is away and there is no one to welcome us, I propose that we welcome ourselves," I said, wishing to appear cheerful.

Crothers silently seconded the motion by throwing fresh wood on the fire, drawing up a stool, and warming his hands. Then we held a brief council of war. It was obvious that some one had been at the hut, but whether the colonel or the doctor there was nothing to indicate. Whichever it might be, it was most likely that he would soon return, and we concluded that it was our best plan to pass the night there. It was late in the day, and no one could think of any other course that promised better. Crothers and I scouted a bit in the neighborhood, but we discovered nothing of the lodge's missing tenant. Whoever he was, he seemed to have gone on a long journey from his table and fireside, and we had little to do but appropriate his table, sit at his fireside, and wait for his return.

The end of the day was near, and the night promised to be very cold. Autumn might be lingering yet in the low-lands, but up here in the mountains, close to the skies, winter was sovereign. The sun went over the hills, the whiteness of the earth turned to pallor, and in the dusk the icy

mountains gleamed cheerless and cold. I was very glad that necessity bade us stay at the hut.

We bestirred ourselves and gathered wood, for we intended to keep a good fire all night. We assigned Grace to one corner beside the fireplace, and made a screen for it by hanging up two or three deerskins. Then we heaped the wood on the fire until the blaze roared up the chimney. A little window, a mere cut in the logs, a half-foot square, was left open. When I went out I could see the light of the fire shining through it, and casting long streaks of red across the ice, the one friendly beacon in the dreary wilderness.

As the day waned and the night took its place, I began to fear that it was neither the colonel nor the doctor who had built the fire, or surely he would have returned before this. After all, it might have been some stray hunter or mountaineer who had lighted the comfortable blaze, warmed himself, and passed on, leaving it to serve the same purpose for any other who might come.

At that point the mountains were more accessible than farther back toward Fort Defiance. One might penetrate them in several directions if he were willing to risk falls on the sheet ice. Several of us, taking our alpenstocks, explored the neighborhood again. The light was sufficient, the reflection from the ice throwing a kind of pale glow over everything. But our explorations brought no profit, and, the night, as we had expected, turning very cold, we returned to the hut.

We stacked our rifles against the wall and composed ourselves for rest. We did not realize, until the necessity for exertion was over, how very tired we were. Grace retired to her curtained corner, and in a few minutes was so still there that we knew she must be asleep despite anxiety. Some of the soldiers stretched themselves upon the floor, and they, too, soon slept. Another, sitting upon a stool, with his head against the wall, snored placidly. We saw no necessity for keeping watch, and even the vigilant Crothers lay down upon the bench, where his eyes soon closed and his breathing became long and regular. The last army of the Confederacy was sound asleep, and the colonel's Yankee spy alone was awake.

They were old, men mostly, heads gray, almost white, and faces deeply seamed, like the colonel's. But they looked to me like a loyal lot, and my

sympathy went out to these old fellows, every one of whom I had no doubt carried old scars on his body. I was sitting on a stone before the fire, trying to read my fortune in the deep bed of coals. Tiring of the vain pursuit, I walked to the little window. The old soldiers slept such a tired and heavy sleep that my footsteps did not disturb them.

I could see nothing but the mountains, cold and white as a tombstone, and hear nothing but the occasional rattle of the loose ice as it fell from the trees and shattered on the thicker ice below.

I went back to the fire, picked out a convenient place in front of it, and decided that I too would recognize the claims of exhaustion and sleep, which were now growing clamorous. Doubling up my blanket and putting it under my head for a pillow, I stretched myself out with my feet to the fire and resumed my old occupation of studying the red coals and the fortune that might be written for me there. I had done it many a time as a boy, and as a man I was not changed.

The regular and heavy breathing of the sleepers had something soothing in it. The logs burned through, crumbled, and fell in coals, adding to the glowing mass. With my half-closed eyes making much from little and seeing things that were not, I built castles in the fire and sent troops of real soldiers marching through them. When the fourth castle was but half finished, I closed my eyes and joined the others in sleep.

Perhaps it was the strangeness of these scenes, much more strange to me than to the others, that disturbed and excited my brain while I slept, and by and by made me waken. The great heap of coals had sunk but little lower, and I reckoned that I had not slept more than two hours at the farthest. It was very warm in the room, for we had not been chary with the fire, and I turned to the little window for fresh air.

Framed in the window I saw very distinctly a pair of bright eyes and a part of a human face. The eyes gazed at me, and I am quite sure I returned the stare with equal intentness. We had hoped for a visitor, but we did not expect to find him at the window.

I rose quickly to my feet, and the face was withdrawn. Wishing to look into the matter myself without disturbing the others, I walked lightly to the door,

on the way stepping over the prostrate bodies of two or three members of the Confederate army. I opened the door and went out. When I came to the window I found that my man was gone, but not fifty feet away, walking toward the recesses of the mountains, was a tall, slender figure. I knew that military bearing could belong to none other in those mountains than Colonel Hetherill, and I felt sure also that it was he who had been looking through the window at us.

I ran after him, but he was better accustomed to sleety mountains than I, and the distance between us widened. He curved around a hillock, and for a few moments was out of my sight, but when I too passed the hillock I saw him straight ahead, his shoulders stooped a little, but walking swiftly as if he were bent upon reaching the very heart of the highest and most difficult mountains.

I shouted to him to stop, and I knew he must have heard me, but for some time he paid no attention. At last he turned around and faced me.

"Why do you go away, colonel?" I asked. "I am no enemy of yours. I am your friend. We have come to rescue you from the wilderness. Your daughter is back there in the hut."

"You are an infernal Yankee spy," he said, "and you are worse than that; you have turned my people against me."

"Colonel," I said, protesting, "don't delude yourself that way any longer. The war is over."

"It is not," he said. "All my men may surrender, but I at least will hold out. Don't I know that they have given up? I saw them in the hut with you and you were not a prisoner. Keep off, I tell you; do not come near me."

I was advancing toward him, not with any intent to harm him, instead the precise reverse, and he, seeing that I would not stop, whipped a pistol out of his belt and fired at me. I suppose his hand was chilled by the cold, for the bullet flew wide of me, chipping splinters from the icy side of a hill. But I stopped, out of regard for my life, expecting another pistol, and he turned and continued his course into the higher mountains. I shouted to him to stop, and I shouted to my comrades in the hut, but the one would not and the others could not hear. He never looked back, and at last disappeared in a

thicket, every bush of which in the moonlight looked as if it were cast in silver.

I walked back toward the hut, feeling some chagrin over my failure to keep one of the men for whom we had been looking, after I had found him. I can say with truth that I was not angered at the colonel's bullet, as I thought I understood him. The light of the fire was still shining through the little window, or rather hole in the wall, and threw a long red bar of light across the whitened earth. It was a friendly beacon to any man in a normal state of mind.

All the people in the hut were still sound asleep, the snore of some of the veterans placidly riding the night wind. I took Crothers gently by the shoulders, and succeeded in waking him without waking any of the others. Then I led him out of the hut and told him my story. He agreed with me that it was best not to say anything to Grace of the incident. But he was in a quandary about the wisest course for us to pursue in the morning, as the possible paths now led in several directions.

This quandary was ended for the time by the sound of a rifle-shot. We were so far from expecting anything of the kind that it startled us both very much. My fear, and I believe that of Crothers was the same, was lest the colonel and the doctor had met. We knew that the colonel had taken a rifle with him when he left Fort Defiance, and probably he had put it in some convenient place near by when he came down to spy us out in the hut.

"Take this pistol," said Crothers, shoving one into my hand, "but, remember, Colonel Hetherill must not be harmed."

The people in the hut seemed to be sleeping on calmly, and, leaving them to their rest, we ran as fast as we could in the direction from which the shot had come. Though we had heard the report distinctly, owing to the rarefied mountain air, I judged that the gun had been fired at least a mile away. There were many echoes, and it was somewhat difficult for us to distinguish the true sound from the false, but we agreed upon a general northeast course.

When we had gone half a mile the gun was fired again, the report echoing as gallantly in the still night as if it had been a little cannon instead of an

ordinary rifle.

"Up the valley there!" cried Crothers. "Follow that, and it will be sure to take us right."

I disagreed with him, however. The report seemed to me to have been farther to the left, and I insisted upon my opinion.

"All right," said Crothers; "you go that way, and I will go up the gully; one or the other of us will be likely to strike it right."

He ran up the gully, and, obedient to his suggestion, I bent away to the left. But I found myself in a very slippery country, the mountains breaking there into successive little ridges like the waves of the sea, though the general direction was upward. Luckily there was a good growth of bushes, and more than once I kept myself from falling by grasping at the outstretched boughs. When I had nearly reached the spot from which I thought the shot had come, I saw a man standing near a tree. The next instant he saw me and sprang behind the tree. I caught but a glimpse of the slender figure and gray hair, but it was enough for me. I had found the colonel again, and I did not mean for him to try a second shot at me which might be better aimed than the first.

I sprang behind some rocks, where I was adequately sheltered so long as he remained in his present position. I feared that he would try to get a shot at me, thinking I was trying to do him harm, and I shifted my position a little, moving farther on behind the wall of rock. I had no intention of firing at him, for several reasons; and I recognized that it was a very difficult task for me to take an armed man against whom I had no intention of using arms. But I believed that if I could slip upon him unawares I could overpower him with superior force and strength, and disarm him.

Ledges of rock were plentiful there, the mountain being broken into an infinite succession of ridges and ravines. Once I slipped on the sleet and crashed into a thicket which stopped me. But the ice knocked off the boughs fell with a rattle like hail, and I was in a tremor lest the colonel should fire at me from some point of vantage before I could regain my feet. But the shot did not come, and, righting myself, I went on, wishing that my shoes were shod with sharp nails and plenty of them.

The ground seemed favorable for my design. The gully up which I was creeping curved around behind the tree that sheltered Colonel Hetherill, and I believed that with caution I could suddenly throw myself upon him from the rear and overwhelm him. I dropped down on my hands and knees, and, though my progress was slow, I avoided another fall. The colonel gave no sign. I presumed that he was behind the tree, watching for an attack and seeking an opening in his turn.

I rose up a little, trying to peep over the wall of the gully toward the tree, and caught a glimpse of a gray head lifted above the same gully wall, but just around the curve. He dropped back like a flash, and from prudential motives I did the same. The curve of the gully at that point was sharp. In fact, it was more of an angle than a curve, and he was only a yard or two from me. As I hugged the wall, I could hear his heavy, tired breathing. I thought once of turning about and going back, but I concluded that it would never do. The colonel had escaped me once, and I would be ashamed to confess to my comrades that he had escaped me twice. I resumed my continuous creep, stealing forward inch by inch until I came to that point in the curve beyond which I could not pass without coming into his sight. Then I gathered myself for a great effort, sprang to my feet, and darted around the curve, ready to spring upon him and surprise him.

I encountered another large and living body rushing in my direction, and the encounter was so violent that I fell back on the ice and sleet, half stunned.

In a few moments I recovered and sat up.

Dr. Ambrose was sitting on a stone and looking at me, his eyes full of reproach. He pointed to a purple contusion on his forehead.

"You did that," he said.

I felt of a growing lump over my left ear.

"You did that," I said.

He surveyed me, still with reproach.

"I took you for Colonel Hetherill," he said.

I put some reproach into my own gaze.

"I took you for Colonel Hetherill, too," I said.

"I expected to take Colonel Hetherill to the hut," he said, mournfully.

"I expected to do the same," I said, sadly.

"Since I can't take the colonel to the hut," he said, "I will take you."

"Very well, then," I said. "While you are taking me there, I will take you too. Shake hands, doctor. I'm tremendously glad to see you, you old rebel."

We shook hands with the greatest good will. Then he went to the tree and recovered the rifle which was leaning behind it, taken by him in his flight. We started back to the hut, and on the way he gave an account of himself. He had fled from Fort Defiance without any clear object in view except to escape the colonel's wrath, which he believed would be but temporary. When the sleet storm came on he had endured it for a while. At last he reached the hut, built a big fire, warmed himself thoroughly, and then went out to look for the colonel, thinking that the fierceness of the weather would have chilled his rage by this time.

Seeing nothing of him, he had fired his rifle twice, in the hope of attracting his attention, and was returning to the hut, when he caught a glimpse of me and believed by my actions that I was Colonel Hetherill, and moreover that I was Colonel Hetherill still inflamed against him. Then he had hidden behind the tree, hoping just what I had hoped, and trying to do it.

"If it had been the colonel and he had got the first chance and fired at you, what would you have done, doctor?" I asked.

"Colonel Hetherill saved my life twice, once at Stone River, and once at Chickamauga," he replied; and I could get no more direct answer out him.

The doctor looked as if he had been having a hard time; there was no counterfeit about his joy at seeing me. His face was haggard, and scales of ice were on his clothing. I told him about my meeting with the colonel earlier in the evening, and it seemed to take some of the hope out of him.

"The colonel has one idea fixed in his head," he said, "and I do not think anything can drive it out."

I raised my voice and shouted for Crothers, and in a few moments his answering cry came. His meeting with the doctor was, as that of two veterans should be, joyful, but repressed.

We went back to the hut, where we found the army still asleep. But we awoke two of the men, directing them to watch until daylight, while we three lay down upon the floor and went to sleep.

Grace's pleasure when she saw the doctor in the morning sound and well was great, though she said but little. I knew the relief it was to her. But we began at once to organize the search for the last rebel. The hut was to remain a base of operations for the present, and, despite her protests, we insisted that Grace remain there at least that day. I had some hope that the colonel, pressed by cold and hunger, might return to the hut; but the doctor shattered this hope by saying that he might find shelter and food elsewhere in the mountains.

"He was fond of hunting," said the doctor, "and it is more than likely that in such a wilderness he provided one or more little camps besides this for future use."

We divided into two parties. Crothers led one, and the doctor the other. I went with the doctor. I waved my handkerchief as a sign of good cheer to Grace, who stood in the doorway, and we were soon in the mazes of the higher mountains. A good sun came out, and in an hour the weather had turned warm enough to permit snow, but not warm enough to melt the ice and sleet. The clouds soon gathered, obscuring the sun, and for an hour we had a gentle snow which covered the ground a quarter of an inch deep, but did not trouble us, as the morning was without wind. It made our footing much less uncertain, and the doctor drew further encouragement from it, as we might find the colonel's footsteps if he should move about after the snow-fall.

The doctor hoped no more than what proved to be the truth, for as the noon hour approached, one of the men called attention to footsteps in the snow. We believed they could be no other than the colonel's, and we followed the trail, which led along the hill-side over rocks and through scrub. It was difficult to follow, and we might well have credited it to a younger man, had not the doctor assured us that the colonel was a most agile mountaineer.

The trail left the hill-side shortly and entered a fairly level bit of country, which by a stretch of courtesy one might have called a small plateau. Many scrub bushes grew upon it, but we could follow the footsteps, whether they led through the thickets or the open. The doctor confessed that the region was new to him, but from the direct manner in which the trail led on he did not believe it was strange to Colonel Hetherill.

The plateau by and by dipped down into a valley, which in its turn gave way to a lot of knife-edged hills, thick-set with sharp and pointed stones, but after this we had the plateau again, and the trail was there still before us, though it seemed to lead straight toward a white peak, too steep for ascent.

The peak was fringed with woods at the base. As we approached these woods with our heads down, our eyes fixed upon the trail of footsteps in the snow, we were hailed in a loud voice and ordered to stop. We saw a little shack built against the trunk of one of the big trees. It was thatched over with bark; under the pent the muzzle of a rifle was poked out at us in the most alarming way.

All of us had recognized the voice as that of Colonel Hetherill, and we believed the rifle-barrel to be an asset of the same man.

The doctor answered the hail with the loud announcement that we were friends, but the colonel bade us be off at once or he would shoot. Knowing his temper, we shifted our ground with great promptness. But we did not leave. Instead, we took refuge in the woods and undertook to prepare a plan of campaign.

The shack was an exceedingly small affair, but from the roof we saw a piece of old stove-pipe projecting, and we guessed that he was provided against the cold. How he stood in the matter of food and water we could not know. But we decided to treat with him at once, thinking we could appeal to his better reason. The doctor hoisted my white handkerchief on the end of a stick and approached the hut. But the colonel threatened us again with the rifle, and was all the more furious because the bearer of the flag was the doctor, who had assisted in my escape and therefore was the worst traitor in Fort Defiance.

CHAPTER VII.

BESIEGERS AND BESIEGED.

The doctor compelled to return, I took the flag and advanced with it. But the colonel hated a Yankee spy as much as a traitor, and warned me off in short order. We gave the flag to one of the soldiers, whom the colonel allowed to approach a little closer. They held a brief dialogue, and then our messenger came back to us, announcing that the colonel regarded all his men as traitors or deserters and would parley no further with them. They might besiege him if they would, but he meant to make a last stand for the Confederacy.

"Was he well?" I asked the man.

"I didn't see him at all," he replied, "for he talked through a chink in the wall, but his voice was mighty high and had a crack in it."

This confirmed me in my belief that privation and excitement had mastered the colonel. Nevertheless we must sit down to a siege of the last rebel. We arranged our forces in such manner that he could not leave the hut and escape unseen into the further mountains. We waited an hour; then, as the colonel in his castle made no sign, I and a soldier went back for Grace. We found her in the hut, waiting impatiently to hear from us, and she did not show much surprise when I told her that her father had fortified himself against us.

She came at once with us, and we sent her to the colonel's castle. She returned in a quarter of an hour much cast down, and told us he was in a fever, with wild eyes and flushed face. He refused to come out, and nothing she said could move him. He even spoke harsh words to her, saying she had

joined his enemies. We sent her back with a couple of blankets and some provisions, and then she returned to us again. The colonel would allow no second person in his defensive works.

It looked like a long siege, and we prepared for it. We soon found Crothers and his party, and we built another shack in the woods, bringing from it the furs and other useful articles in the hut. It was well that we did the work quickly, for Grace fell quite ill with hardships and excitement, and soon was in a fever and talking a bit wildly.

We put her in the shack on a bed of furs, and Dr. Ambrose, who did not have the title of doctor in vain, attended her, and said she would be all right in a day or so. But her illness was a misfortune, for she was the only one who could be considered a strict neutral and could carry messages between our little army and the colonel.

We were sufficient in number to form a picket around Fort Hetherill, for so I named the colonel's shack, but we were very careful not to come within range of its defender's rifle. One of the men, a good fellow named Kimball, went a little closer than the rest of us, and the prompt discharge of the rifle from Fort Hetherill showed that the colonel was watching. The bullet skipped across the ice fifty feet short of its mark. Kimball moved farther away.

Having posted the men, I made a round and cautioned each to watch faithfully. But the caution was scarcely necessary. Every man there was under heavy obligations to the colonel for something or other, and all meant to take him alive.

It was cold work there on the ice, but we had brought provisions with us, and that supply, coupled with what was stored in the hut, prepared us amply for a siege in form. We made some coffee and served it to the men on picket duty, following it up a little later with a nip of whiskey for each, and they felt quite warm and comfortable. The colonel, after his rifle-shot, rested on his arms and maybe looked to his defences. The piece of old stove-pipe which projected through the roof began to smoke, showing that he had firewood and that he too was able to keep warm. It looked like a long siege.

The general commanding, who was myself, and Crothers, the second in command, held a council of war and decided to postpone operations until nightfall, when Crothers thought he would be able under cover of the darkness to steal upon the colonel and take him. Then we waited for the slow afternoon to limp away. The sun was of a dazzling brightness, but there was no warmth in it. The ice-fields glittered under the rays, but did not melt. The light was reflected, and with half-shut eyes we watched the peaks and the coated trees. Sometimes faint blue, purple, and green tints showed through the white glare.

"Crothers," said I, "if ever I go on another winter campaign like this, I will not forget a pair of green goggles, largest size."

"I wish I had them now," said Crothers.

The glow on the ice-fields turned to gold as the sun began to set behind the highest peak, from gold shifted to a blood-red, and as the sun went out of sight faded and left the pale green of a wan twilight.

"These sheets of ice are in our way in more ways than one," said Crothers. "They light up the night so much that I could put a bullet in a silver quarter at twenty paces."

"Do you think the colonel could do as well?" I asked, somewhat anxiously.

We thought it well to wait until past midnight, when the night would be darkest. So we served supper and hot coffee, relieved the pickets, and waited. The colonel in his fortress seemed to be content: at least he gave no sign. Dr. Ambrose reported that Miss Hetherill was much better and would be on her feet again in the morning. The night limped as painfully as the day, and had the added demerit of being colder.

A wind came down from the northeast, and there was a raw sharp edge to it. I shivered and my bones creaked with cold inside the heavy overcoat Crothers had given me. May the good Lord deliver me from any more winter campaigns! The moon, pale and icy, rose, and its chilly rays were reflected from the more chilly ice. Pieces of ice blown from the crusted boughs rattled dryly as they fell.

As Crothers had foretold, the white glare of the earth lighted up the night until objects were almost as distinct as by daylight. The outlines of Fort Hetherill were clear. I could even trace the ridges in the bark. Any of us advancing would make a most beautiful target, and we stuck to our determination to wait for further darkness.

The column of smoke from the colonel's hut increased, as if he too felt the growing cold and would ward it off. Midnight came, and shortly afterward the heavens began to darken. The outlines of Fort Hetherill grew dimmer. I could no longer trace the ridges in the bark; then the hut itself became an indistinct mass, seeming to wave in the wind, which still came down from the mountain-tops and presented bayonet-points to us. The time seemed favorable for an advance upon the enemy's fortifications. Our plan was very simple; we formed a circle around the hut, intending to contract this circle until we reached the house itself, when we would rush in and seize the garrison. The difficult part of it was to steal up so silently that the garrison would not hear us coming: to do it we would be compelled to creep along, taking advantage of every elevation that would shelter us.

Crothers and I started from adjacent points in the little wood, and set out upon our hazardous advance. The ground was broken and rough, and I soon lost sight of him, but, despite his efforts to be noiseless, I could hear his heavy-soled boots scraping over the ice, and his breath puffy like that of a man who was working hard. I dare say I was interrupting the atmosphere in a similar manner; but then I was criticising Crothers, not myself.

I got along pretty well, and was half-way to Fort Hetherill. I ceased to hear Crothers for two or three minutes, and then I heard him scraping along and puffing as before. As we had come half the distance without trouble or resistance, I thought I would go over to him and hold another conference. It seemed to me that we needed at least one more council of war before attacking the hut, if we were to follow strictly the mode of procedure prescribed in the military manuals.

Turning about, I crept and slid toward him until a little ridge not more than half a foot high divided us. I could see his figure stretched out on the ice, and I reached out to touch him. But I was anticipated, for he reached up and grasped me by the throat with two very strong hands. Then I saw that

instead of stalking Colonel Hetherill, he had stalked me, the stalker was stalked, and I recognized in it a fact as painful as it was alarming.

The colonel seemed to me to be prodigiously strong for the sick man the soldier had reported him to be. His hands compressed my throat so tightly that I could not cry out, and my limbs were paralyzed; an unpleasant situation for an invading army, I willingly admit. The colonel's eyes were angry, and his face was very red, which could be the result both of fever and of wrath. Both, I think, added to the strength of his arms.

He sat up on the ice and held me out at arm's length like a big doll. I knew that Crothers was near, and I wanted to cry out instantly and wanted to do it very badly; but for the life of me I could not, with that old Confederate's iron fingers on my throat. I had no doubt that Crothers and the men would continue to creep upon the hut, rush into it, and find nobody there. Meanwhile, I would be turning into a cold corpse on the ice.

The colonel released his hold upon my throat so suddenly that I fell upon my back and gasped, which, however, was much better than not breathing at all.

"Why did you do that?" I asked, feeling injured in the spirit as well as in the flesh.

"It was my intention to kill you," he said, "but I've changed my mind."

"Thank heaven!" I exclaimed, devoutly.

"I couldn't do it; it was too easy," he said.

If that was the reason, I was not so thankful. But I considered it good policy not to explain my views just then. Although the colonel had released me, he kept his hand on the butt of a very large pistol in his belt. I thought it wise to withdraw.

"Good-evening, colonel," I said, giving the military salute as well as I could in my undignified position.

"Good-evening," he said. "This is a sortie of mine, understand, and if I have chosen to spare your life, it is for reasons of my own. I am going back into

my house, and you would better notify your friends that I am awake and on guard. It may save them much hard work and a little loss of blood."

He slipped back over the ice toward the fort with an agility marvellous in an old and ill man. Despite his calm manner, I had no doubt that fever was still in his veins. Being so nervous and excitable when well, it was natural that he should be calm when ill, especially in certain stages.

I could see him for at least twenty feet, and then he disappeared in the darkness that now clothed the hut like a mask on a man's face. I felt no doubt that he was inside, ready to shoot down the first man who attempted to enter after him.

In this emergency I thought it best to find Crothers, notify him that the attack had failed, and withdraw our forces. I believe a prudent general always withdraws when things go wrong. Moreover, I was getting very cold. Embracing the earth when it has an inch coat of ice on its bosom is no such delightful proceeding.

Putting my ear to the ice, I heard the scraping of Crothers's hobnails not fifteen feet away. I was sure that I was making no mistake this time, and I speedily overhauled him, to find that it was the real Crothers. He coincided with my view that it would be better to withdraw, like the King of France of the ancient rhyme, and try again. He gave a whistle which may have been a part of the Confederate set of signals, though I don't know, and in a few minutes our entire army had retreated and reassembled at our own hut, casualties none, and the enemy still in possession of his defences.

As we had satisfactory proof that the colonel was vigilant, we decided to end the military operations for that night and devote what was left of it to keeping warm. The hut was occupied by Miss Hetherill, whom the doctor reported to be in a sound slumber and doing well. As all the space under shelter was necessarily reserved for the lady, we decided to build a big fire near the hut and sit around it until morning. It was a hard task, owing to the icy condition of the firewood, but we got it to going at last, and the cheerful, crackling blaze put heart in us all. We had no fear that the colonel would come out and shoot at us in the light. He was not that kind of a soldier, and, besides, his plan, as far as we could divine it, was to escape from us, not to inflict any special injury upon us.

Dr. Ambrose was somewhat cast down at our failure to seize the colonel at the first attempt, but his spirits were revived presently, and when I asked him to tell me about some of the old battles in which he and the colonel and the others present except myself had fought, he became animated and time ceased to limp.

An hour of this, and the doctor broke off abruptly. As Crothers and I had been in the thick of the campaign all the time, he suggested that we roll ourselves in our blankets and try to get a little sleep by the fire. We followed his advice, and in five minutes I was dead to the world and its vanities. But presently I was dragged back out of infinite depths and told to sit up and open my eyes.

"Why, I have just closed them, and it was at your suggestion," I said to Crothers.

"You've been asleep for the last three hours. Wake up and look at the weather."

I thought the weather a trifling pretext to awake a man from such pleasant slumbers, but when I looked about I saw better. The air had turned much warmer. There was a smack of wet in it, which to an experienced man was certain proof of snow to come, and more of it, too, than the thin skim of the day before. Even in the skies, naturally dark from the night, we could see heavy masses of clouds rolling.

"It will begin inside of a half-hour," said Dr. Ambrose.

"And a snow-storm in the mountains is no light matter, doctor," I said.

"Certainly not."

A deep snow would be sure to put a great check upon our military operations; it might even make our own situation precarious, for one must have food and keep warm. We bestirred ourselves with the utmost vigor, gathering firewood, and soon had a huge heap of it beside the hut. But the snow came inside the doctor's predicted half-hour, and with ten minutes to spare. The clouds opened, and it just dropped down. The skim of ice was soon covered, which was an advantage, saving us some falls and bruises, but it impeded the work on our new house. It was perfectly obvious to us all

that we must have shelter from such a snow-fall. We were trying to make a sort of rude shed with sticks and brushwood in the lee of a cliff. My comrades were old hands at the business, and it was marvellous how expert they were: with some sticks and brushwood, two or three blankets to help out on the roof, and even the snow itself, which they banked up in ridges at the sides, they made a comfortable place.

I was busy on this rude structure and trying to keep the snow out of my eyes, when some one tapped me on the shoulder and said,—

"You are a promising architect, Mr. West."

I looked around in the greatest surprise, and beheld Grace Hetherill, pale, but otherwise showing no traces of illness. The heavy dark cloak which she wore when we started was buttoned high up around her throat, and a neat dark fur cap enclosed her hair. She looked very handsome and picturesque.

"I congratulate you, Miss Hetherill, on your speedy recovery," I said.

"It was merely nervousness and excitement," she replied. "A draught of something very bitter that Dr. Ambrose gave me, and a good sleep, have restored me."

"Very well," I said, thinking to cheer her up: "then there is no reason why you should not help in the making of the camp, and show that you are a better architect than I am."

"I am mountain-bred in part at least," she said, "and I know hardships. What may I do?"

"Take hold of the end of that pole," I said, "and lift."

She seized it and with strong young muscles lifted it up. I was at the other end, and together we swung it into place.

"That does pretty well for a rebel lass," I said.

"Here, you are the rebel," she said, "for this is our territory and you are our prisoner."

"What's this? what's this?" cried Dr. Ambrose. His back had been turned toward us, and he had not seen the approach of Miss Hetherill. "Just up from a fever and out here in the snow! Go back in the hut."

There was sound sense in his command, and I added my advice to it, but she would not go until we assured her that Colonel Hetherill was safe in his own hut and pointed to the curl of smoke which still came from his stovepipe.

On second thought we took our own little hut and moved it bodily to the shed, deeming it best that all our forces should keep as close together as possible. Then, our main task finished, we took breakfast, and watched the snow, casting an occasional glance toward Fort Hetherill. We were glad on the whole now that the snow had come, for if we should be snowed up the colonel would be treated likewise, and perhaps it would induce him to hoist the white flag.

The day had come, but it was a very dark and dreary pattern of a day. I have seen some people who imagine that Kentucky has a warm climate. It may have in summer, and so, for the matter of that, has Manitoba, but for real deep snows or piercing cold that goes right through your bones and comes out on the other side, I will match the Kentucky mountains against anything this side of the Arctic circle.

The snow that morning seemed bent upon making a record. Some of the flakes looked like big white goose feathers. Nor was there any nonsense about them. They came straight down and took their appointed place on the earth; others immediately fell and covered them up, and in turn were served the same way. There was no wind at all. The clouds were drawn like a huge dirty blanket across the sky, and gave to everything except the snow itself a muddy, grayish-brown tint. Presently we heard a sharp report in the adjacent forest, and then another, followed speedily by another and many others, until they blended often together like a rolling rifle-fire. A dreaming veteran might have thought he was back in the wars, but none of us stirred, for each knew that it was the boughs of the trees breaking with a snap under the weight of new snow.

"That might scare a man who was never in the woods in big-snow time," said Crothers, who had lighted a pipe and was taking things calmly.

The snow deepened faster than I had ever seen it before. I could mark it by the way the surface lines crept up the side of our rude shed. A few hours of such industrious clouds and the mountains would be past travelling. The skies made promise of nothing else. There was no break in the dun expanse.

The defiant curl of smoke from the colonel's little fort still rose. I devoutly hoped that he would remember soon to come out and join us. Then we could go back together to Fort Defiance, and make merry behind stout walls that cared nothing for snow and cold. But his hut remained tightly closed, and the snow was deepening as fast as ever.

Since the colonel would make no sign, it became evident to me that we must. I called again my council of officers, the doctor and Crothers.

"There is nothing for us to do," I said, "but send Miss Hetherill to the hut and see if she cannot persuade her father to join us."

"He has said that he would not admit her a second time," said the doctor.

"She must push her way in," I said. "The door to that hut is not strong, and a father would not fire upon his own daughter."

They agreed that my plan was the only thing feasible, and we called Miss Hetherill. She was eager to undertake the mission. She had been waiting to propose it, but held back, expecting us to act first.

She started at once toward the hut, which was only two or three hundred yards away, but her progress was slow. The snow, which had now attained a great depth, blocked the way. We watched her breaking her path through it toward the hut, where the colonel was silent and invisible. The little building seemed almost crushed under its weight of snow, but the languid coil of smoke still curled from the mouth of the pipe. Miss Hetherill was within twenty feet of the door.

"The colonel hasn't taken notice yet," said the doctor. "It would be funny if she should find him sound asleep and in our power for hours, if we had only thought to take him."

I watched with eager interest as the twenty feet between Miss Hetherill and the door diminished. She reached the door and knocked. As she stood there

and waited, I guessed that she received no answer. She knocked a second time, waited a minute or so, and then pushed the door open and entered. She ran out again in a moment, uttering a cry and turning a dismayed face toward us.

We ran to the hut as fast as we could, plunging through the snow. I was the first to arrive: when I thrust my head in at the open door, I saw that the place was empty. Some coals still smoldered upon the flat stone which served for a rude fireplace; a dressed deer-skin lay in the corner; but the colonel was gone beyond a doubt. One large man would nearly fill the place.

"He's taken his rifle and ammunition with him," said Crothers, "so he's all right."

I was glad that he had called attention to the fact so promptly, for it seemed to indicate deliberation and not delirium on the colonel's part.

There was no need to ask what next from the men about me. Their obligations to the colonel would never permit them to abandon the search for him as long as one hope that he was alive existed. But the great snow was a formidable obstacle to any expedition.

"How shall we go about it?" I asked, hopelessly, of Dr. Ambrose.

"There is no trail," he replied; "the falling snow covers up his footsteps a half-minute after he makes them; but he must have gone up that slash through the hills there. It is the easiest route from here, and the one a man with no fixed idea in his head would most likely take."

There was a general agreement with the doctor's opinion, and we planned our pursuit at once. Four men would remain at the camp and protect it, and relieve us should we return exhausted and without the fugitive. Miss Hetherill would remain with them. She made some demur, saying she was a good mountaineer and citing proof, but she yielded to the obvious fact that a woman could make but little progress through the deep snow.

"We will be sure to bring him back," I said to her when we started.

"Take care of yourself too," she said.

"For my sake only?" I asked.

"For all our sakes," she replied.

But she blushed a little, despite the anxiety which was foremost in her mind.

We passed up the defile, and then our party spread out like a fan. I was convinced that the colonel could not have gone far. The snow was an added obstacle to the naturally difficult character of the mountains. It was still pouring down, half blinding us, and compelling us to scrutinize every inch of the way lest the loosening drifts should carry us in an avalanche to the bottom of some precipice, which would be highly disagreeable.

CHAPTER VIII.

THE RESULTS OF A SNOW-SLIDE.

Dr. Ambrose and I stuck together, picking our way through the storm. Snow-covered mountains under an angry sky are not a cheerful prospect, and the work was fearfully tiresome. Down my boot would crush under my weight through a foot of snow, and to lift it out again was like drawing a wedge from a log.

It was winter, but I grew hot, and my brow produced sweat. My breath shortened, and my muscles said they were tired. The doctor noticed me.

"You'd better go back, Mr. West," he said. "This is very exhausting business for one who is not used to it."

But I was a bit ashamed of playing out so soon, and insisted upon going on. He said nothing then, but when he raised the question a half-hour later I was forced to confess that he was right. A tuckered-out man was of no use on such a trail.

"You'd better go straight back to the camp, and I've no doubt you'll find one or two there who played out before you did," he said.

Leaving him regretfully, I faced about and began to plough my way through the snow on the return journey. I had noted the landmarks well, and recognized them easily. The snow, still falling, had buried all trace of our footsteps under two or three inches of white. I tugged along with a fair degree of patience, wishing at the same time that I was back at the camp, drying my boots and drinking a hot toddy,—unpicturesque but pleasant occupations. But walking beat wishing, and at last I saw the smoke of our

camp-fire over a hill. I increased my speed, trying to make a run through the deep snow. I passed near the edge of a cliff, but no nearer than we had gone when we started on the search. I forgot that the snow had grown deeper and more weight was pressing down upon the slopes. When I was nearest the edge the snow seemed to slip from under my feet; the mountain tilted up at a new angle; there was the rumble of tons of snow sliding over the steeps, and away it went in a huge white avalanche, bearing me, who had started it, upon its crest, sick with sudden fear.

The itch of life was in my fingers; it, and no thought of mine, made me reach out and grasp at the sturdy shrubs which grew on the mountain-side. With each hand full, I hung on, and shouted and kicked. Big waves of snow tumbled over me and loosened my arms in their sockets, but I swung to my brave bushes until I had received my last douse of snow and the slope was swept clean.

I managed to get my toes into a cleft, and my arms felt better. My head was beginning to think and come to the relief of instinct. I saw that I was about ten feet from the crest of the cliff; which was not far, but too far. I tried to draw myself up by the bushes, but I was no sailor, and I failed. Then I shouted with all my might. I had seen the smoke of the camp just before my fall, and I hoped my voice would reach the men there. I never knew before that I had such a good voice.

"Hello-o-o-o!" I shouted.

The mountains took up the cry and sent it back to me.

"What's the matter down there?" called out some one.

"The matter?" I said, angrily. "There's no matter at all; I came down here merely for amusement. I do this sort of thing often."

I looked up and saw the red face of Colonel Hetherill peeping over the brink at me.

"Ah, it's young West, the Yankee spy," he said.

"I'm young West, I'll admit, but I'm no Yankee spy," I replied.

"I insist that you are a Yankee spy," he said, in an infernally calm and convincing manner. "What proof can you give that you are not?"

"Colonel," I cried, and I'm sure that my tone was convincing, "for heaven's sake drop that Yankee spy business and get me out of this."

"Sir," he said, very stiffly, "I have accused you of being a Yankee spy, and I will compel you to admit that you are a Yankee spy."

"Colonel," I shouted, "my arms are growing tired, and so are my toes, and it is at least two hundred feet to the bottom."

"Sir," he said, still very stiff and haughty, "I despise falsehoods, and so do all Southern gentlemen. You are a Yankee spy, and you still have the face to deny it."

"Pull me up colonel," I cried. "I'm getting awful tired."

"Are you not a Yankee spy?" he asked.

I thought I felt some of the muscles in my arms cracking. The time to despise trifles had arrived.

"Yes, colonel," I said, "I'll admit that I'm a Yankee spy or anything else you want to charge against me."

"Good enough," he said. "Now when I let my coat down, grip it with your right hand, and hold on as if you had grown to it."

He pulled off his Confederate overcoat, curved his left arm around a jutting rock, and with his right hand lowered the coat to me. I embedded my right hand in the gray garment, and, grasping with the other at the short shrubs, tried to scramble up. I did get about half-way, but as I could find no more crevices for my toes, I hung there, limp and exhausted.

"I can't do it, colonel," I gasped.

"You must," he said.

He tried to draw me up, but I was too heavy a weight for a single arm. He was half over the gulf himself, but his left arm was wound like a cable

around the rock. His face was red as a beet and his breath was short, but he showed no inclination to let go.

"You can't do it, colonel," I gasped. "Save yourself! No need for both of us to drop."

"What sort of a man do you take me to be?" he asked, indignantly.

He breathed hard and made a great effort to pull me up. A flake of blood appeared on his temple. I was raised up about a foot and got a new grip on some of the shrubs, but there I stopped. I could not lift myself up any farther, nor could the colonel lift me.

I could hear men plunging through the snow in their haste; so my shouts had been heard by more than the colonel. I put my voice to its best uses again. The colonel said nothing, but how he hung on to that old army overcoat! The men had begun to shout, and I never ceased, wanting them to make sure of the direction. Weather-seamed faces looked over the brink. Two or three pairs of hands grasped the overcoat and pulled me up. Somebody else seized the colonel, and I have but a hazy idea of the next five minutes. A man who has been hanging at the verge of death gets tired in both brain and muscle, and I needed rest.

When things came around all right again, I was sitting up on the snow and drinking out of a brown bottle. The colonel was lying on that blessed overcoat, his head in his daughter's lap and his face quite pale. They were binding a white cloth around his temples.

"What's the matter?" I asked, weakly.

"An old wound on his head has broken," replied one of the men, in a low voice. "I'm afraid he's in a pretty bad way."

I put down the brown bottle which had comforted me, and I saw that the colonel in fact was in a bad way. He was unconscious, and his breathing was weak. He seemed to have collapsed after a season of fever and excitement followed by the great physical strain put upon him by the attempted rescue of me.

I was struck with remorse. My arrival at Fort Defiance had caused all this trouble. Yet my going there was an accident, not a matter that I could have helped.

I sent one of the men after Dr. Ambrose, pointing out the direction in which he had gone, and urging the man to make all haste. Then we lifted the colonel and carried him to the hut, where with overcoats and blankets we fixed up a warm bed for him and did what else we could until the doctor came, which was not till late.

"He has about an even chance, Miss Hetherill," said the doctor, after he had made his examination. "The odds might be his if I had here all that I need, but this is no hospital. I think it is best to tell you the exact truth."

I thought so too. There are women and women; some are brave and some are not; I like the brave ones best. She became chief nurse at once. Lucky it is for a man, ill in such a place, to have a woman's care. I, still feeling remorse, although my reason told me I was not at fault, helped all I could.

The snow ceased, and toward evening the colonel grew stronger. Dr. Ambrose had managed to close up the reopened wound and stop the bleeding, but a burning fever came over him and he began to talk very wildly. Then I saw how the things on which a man's mind is centred when he wakes come out again in sleep or delirium. His talk was all of the war and the old battles, which he was fighting as if he rode and charged in them again.

I, who loved the Union, could not help feeling a deep sympathy for him, he seemed to have taken the matter so much to heart. When he rambled on to the end of the war,—that is, the end according to history,—and repeated again and again his declaration to stand out forever, I was touched, and touched very deeply. Some one brought him the news that Lee was dead.

"I will not believe it," he cried, in his delirium. "It's a lie. He is living, and he will lead us again."

He rose suddenly, and, fixing his fever-filled eyes upon me, demanded of me to bear witness that it was a lie.

"Yes, colonel," I said, as soothingly as I could, "it's a lie: the general is living, and he is your commander still."

I think I will get forgiveness for my own lie.

After a while he sank into something which resembled sleep more and delirium less, and was quiet. Miss Hetherill stepped to the little door for air. Only she and I were there.

"Miss Hetherill," I said, reproaching myself, "how you must blame me for bringing all this grief upon you and yours!"

"You could not help it," she said, very gently, "and perhaps, as I told you before, it may be for the best, after all. A rough cure may be the best cure."

Dr. Ambrose came up then and insisted that we should take rest while others watched. We fenced off a corner of the camp for Grace. I sought my own place, and was soon sound asleep. In the morning I found the colonel in delirium again, though not so violent as he had been in the early part of the night. He was talking about me. I seemed to weigh upon his conscience, as he had weighed upon mine. He had never meant to do it, he said. He would not have executed me, though he still seemed to think that his military duty commanded it. At any rate, he was apologizing to me in his sleep, when a man's talk speaks his thoughts and no falsehoods or evasions.

"How could I execute him?" he said. "And we slept under the same blanket, too."

The second attack of delirium did not last long, and Dr. Ambrose then said that the patient's progress was good: if we could only get him back to Fort Defiance he would guarantee his recovery.

The snow had ceased and the clouds had gone, leaving a cheerful sun shining on a white wilderness. We decided to undertake the journey to Fort Defiance, and our preparations were brief. We had sufficient skill and material to make a rude litter for the colonel, and we lifted him gently into it. Then we gathered up our baggage and set out, four men carrying the litter and relieved at brief intervals by the other sets.

We had to trample a way through the deep snow, and there was plenty of hard work for us, but we became a cheerful little army. The colonel was asleep in his litter and seemed to be growing steadily better; the doctor reported that his pulse was stronger and his fever was departing. Grace passed from sadness into cheerfulness, almost gayety. I called her our vivandiere: she replied she was proud of the place.

"You heard what my father said about you in his delirium?" she said, when we became the last two of the procession. "He would not have executed you."

"Colonel Hetherill is a fine man, and he has my gratitude," I replied, not liking to see her under the necessity of excusing him. "He saved my life a second time. If it hadn't been for him, I'd now be a very cold corpse at the bottom of a two-hundred-foot precipice, under about fifteen feet of snow."

"That would have been a chilly tomb," she said, gayly; "but it was not for you, and we are all thankful."

The weather, it seemed, wished to make some amends for its previous wickedness. The sun was bright and the air fresh and full of tonic. Only the snow stood in our way. But we made good progress in spite of it. At night we devised another rude camp, and took plenty of sleep. The colonel continued to improve, and his head became quite clear again. He talked a little, but in a weak tone, and the doctor ordered him to be silent for his own good. He obeyed like a little child. In fact, his change in manner and appearance was very striking. He was no longer the haughty, high-tempered colonel. He was crushed and forlorn. All the spirit seemed to have gone out of him. It was most pitiful. I felt sorrier than ever for him, for I knew he looked upon himself as a defeated man.

We caught the first glimpse of Fort Defiance that afternoon. I saw the comb of its roof shining like a great white sword-blade in the sun. The valley, like the mountains, was in garments of white, but the sight of the houses and fields, under snow though they were, warmed the heart after the weary tramp among the clefts and peaks.

We descended the slopes and entered the valley. It was my turn to be one of the four at the colonel's litter. As we swung along at a good pace, I noticed

suddenly that the old man had put his hands to his face and a tear was dropping between two fingers.

I was silent for a while from respect, but, as he did not take his hands away, I asked at last, though as quietly as I could,—

"What is the matter, colonel? Do you feel worse?"

He took his hands away, and his face was like that of a dead man.

"Not worse in body, Mr. West," he replied, "but worse, much worse, in mind. I have failed in everything, and through the treachery of my own people. You have corrupted them all. Even my own daughter has turned against me. I am going to Fort Defiance, which was our last stronghold, a prisoner."

"Colonel," said I, "what are you thinking about? What are you dreaming of? You a prisoner! Fort Defiance betrayed! Look yonder!"

We were near the fort now, and I pointed to the Confederate flag, that waved over it, folding and unfolding in the clear frosty breeze. The colonel looked, and his face changed in a moment from death to life. The blood flowed into his cheeks; his eyes sparkled like a soldier's eager for battle.

"Why, what does that mean?" he exclaimed.

"Mean?" I said. "It means that you've been dreaming, or you wouldn't talk about being betrayed, a prisoner. What made you rush off in such haste? Dr. Ambrose's suggestion of surrender was a sudden thought, of which he has repented. Fort Defiance is as loyal to you as ever. You are its absolute commander. I am the prisoner, not you."

Dr. Ambrose had been walking by the litter. The colonel beckoned to him.

"Is this so, Dr. Ambrose?" he asked. "Is what Mr. West tells me true? Am I still master of my own?"

"Certainly: how could it be otherwise," replied the doctor, with great emphasis. "What are your orders, colonel?"

"Tell one of the men," he said, in a voice very firm despite his physical weakness, "to go on ahead to the fort, and direct those who are there to salute us as we approach. Mr. West, you are my prisoner, but there are certain circumstances in your favor which I will consider. You shall have the liberty of the fort and valley, if you pledge your word not to attempt to escape for the present."

"With pleasure, colonel," I said; "and I thank you for your kindness."

"Grace," he said to his daughter, "remember that while Mr. West is our prisoner he is to be treated as our guest. See to it, for I am afraid this unfortunate illness will interfere somewhat with my duties as host."

"I will do my best," she said.

We proceeded at a deliberate pace across the plain. As we came close to the fort, the little brass cannon boomed again and again. The drawbridge was down, and the men whom we left at the fort were drawn up at parade in their best uniforms on either side of the bridge-head. They saluted as the colonel rode proudly and triumphantly between their lines in his litter.

He looked up at the flag which he loved so well, took off his hat, his face flushing with pride, and thus we carried him into the fort.

CHAPTER IX.

I AM IN FAVOR.

We sat again in the great drawing-room at Fort Defiance. The military appearance of the apartment was unchanged. The portraits of the Confederate generals looked from wall to wall at each other. The bright sun, reflected from the snow outside, gleamed on the burnished arms. At the head of the table sat the colonel, in his most brilliant uniform, stiff and precise as a judge should be. Dr. Ambrose at the side of the table took their statements in writing, and six men in Confederate gray, Crothers at their head, listened attentively to the evidence.

Thus my second trial on the charge of being a Yankee spy, appealed on a writ of error from the first, drew to its end.

Miss Hetherill sat beside the window. Streaks of dim gold showed in her dark hair where the winter sunshine fell across it. When her eyes met mine a bit of a smile appeared in them, and the delicate color in her cheeks deepened.

The last evidence was given, and the colonel directed the military jury to retire to the next room and consider a verdict. When they had gone we waited in silence. The snow-birds hopped about outside. One of them perched on the window-sill and stared at us through the glass for a moment. Then he flew away. The snow on the knife-edge of the distant mountain ridges shone like gold under the sun.

The jury returned, Crothers at their head.

"What is your verdict, gentlemen?" asked the colonel.

"Not guilty," replied Crothers. "It is our unanimous decision."

"I am glad of it," said the colonel. "It is my opinion too. Mr. West, my congratulations and sympathy as from one honest enemy to another."

He reached over and gave my hand a strong and friendly grasp.

"Remember," he said, "that until we return you to your own country you are our guest in the fullest sense of the word."

Dr. Ambrose and Crothers also shook my hand, and everybody seemed to be glad that we had arrived at the truth at last.

By and by, only Grace and I were left in the room. We stood by the great window; the brilliant sunlight reflected from the snow threw a broad band of gold across the floor. Her face, for the first time since I knew her, seemed peaceful and content.

The snow-birds hopped from one little white mound to another, like their brethren of the summer passing from flower to flower. Three or four flew to the brave little brass cannon which menaced the passage of the drawbridge, and perched upon its barrel.

"They don't seem to fear the dogs of war," I said.

"They need not," said Grace. "Our cannon will never be used again; the last salute cracked the barrel all the way."

"Do you forgive me," I asked, asking the old question, "for bringing so much trouble upon Fort Defiance?"

"There is nothing to forgive," she said, earnestly. "It was no fault of yours."

I became brave.

"Then you are not sorry I came?"

"No."

I took her hands in mine.

"You are sorry I am going?"

"Yes."

I kissed her for the second time in my life.

The day had come for me to leave Fort Defiance. The great snow had gone. The whole Confederate army, its commander at its head, accompanied me as a guard of honor to the end of the valley. Crothers would guide me across the mountains. When the time came for the others to turn back, Colonel Hetherill shook my hand again.

"You are a gallant and honest enemy," he said, paying me the highest compliment he knew.

Grace walked a little farther. Then I took both her hands in mine and kissed her for the third but not the last time in my life.

The trumpet sounded the recall from the walls of Fort Defiance.

"I will come again," I said.

"But not as an enemy."

"Never as an enemy."

THE END.

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